Rules, Standards, and Rubrics: What Two Legal AI Benchmarks Reward

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Abstract

Legal AI benchmarks now double as training environments. Harvey's Legal Agent Benchmark (LAB) and micro1's LegalReasonBench grade AI-drafted legal work against rubrics written by lawyers, and rubrics of the same kind are used as reinforcement-learning rewards. I audited the litigation portions of both public releases. AI auditors screened every criterion (2,858 in LAB's 52 litigation tasks; 179 in LegalReasonBench's 11 litigation assignments), and I reviewed a random sample of 25 flagged criteria from each under sampling protocols committed before the draws. In LAB, 16 of 25 sampled criteria were defective, 9 of them objective errors in which the record, the law, or the arithmetic contradicts the rubric. In LegalReasonBench, 21 of 25 were defective, 7 objective. Within the flagged sets, at least 383 LAB criteria (13.4% of all litigation criteria) and at least 45 LegalReasonBench criteria (25.1%) are defective, each at 95% confidence.

The defective criteria contradict their sources, penalize accurate statements because they ignore the statement's function, credit representations the record does not support, or make one lawyer's choice on a debatable question the only acceptable answer. Consistent grading cures none of this: three judges can agree that a brief triggers a penalty while the penalty itself is wrong. These failures matter because legal competence includes selection. Recognizing an argument does not establish that it belongs in the deliverable. The audit does not measure the effect of training on these criteria. It shows why gains in rubric scores need independent validation before they can be read as gains in professional judgment.

1 Introduction

Extraordinary gains in the quality of frontier models' legal capabilities over the past 2–3 years have saturated many older legal benchmarks, which tested models on the knowledge of well-settled propositions of law. This extraordinary growth in legal capabilities has led recently to a wave of new benchmarks (which often also serve as training environments) that aim to push frontier models' legal capabilities further. The leading example today is Harvey's Legal Agent Benchmark (LAB), which evaluates AI agents on a range of legal work product tasks, using LLM judges to score performance against human-annotated rubrics. Harvey has trained its own legal AI models using environments that share LAB's structure, and Applied Compute has used LAB as a reinforcement learning reward [8, 11, 12]. More recently, micro1, a data vendor that sells training environments to AI labs, built LegalReasonBench the same way [13].

The objective of these benchmarks, and their related training environments, is to create reward signals for evaluating or training models on high-level legal tasks. The expert-written rubrics aim to reduce at least a major portion of a lawyer's professional judgment to a list of criteria

that can help judge models distinguish good from bad legal work product. Recognizing that this process is imperfect, both micro1 and Harvey open-sourced a portion of their benchmark tasks; Harvey expressly invited practicing lawyers to audit the criteria their benchmarks use and to offer feedback on how these benchmarks can be improved [8]. Taking up that invitation, I audited the open-source litigation tasks from both benchmarks in order to understand how effectively the AI training techniques used at the frontier teach legal models legal judgment. I am a litigator with sixteen years of practice at top 10 law firms, with a broad generalist litigation practice that has given me exposure to everything from criminal trials and mass torts to securities class actions and bankruptcy; as such I audited the litigation tasks. After reviewing an initial sample, I gave AI auditors instructions on how to assess every criterion in LAB's 52 publicly available litigation tasks and in the 11 litigation assignments of LegalReasonBench's public sample. The AI auditors flagged criteria they believed were defective or arguably defective under the standards I had provided. I then reviewed a simple random sample of 25 AI-flagged criteria from each benchmark, reading the task instructions, the supplied record, the governing law, and how each benchmark's own judges had graded two frontier models on the same criterion.

The results showed that improving legal capabilities further, from the already high base that frontier models have achieved, has become extraordinarily difficult. Both benchmarks, even though they were developed by industry leaders applying cutting-edge reinforcement-learning techniques, had a significant defect rate, including a mix of legal or factual errors, or rubrics that trained models to take steps that I considered to be unreasonable professional judgments. The audit established, with 95% confidence, that at least 13.4% of LAB's litigation criteria and at least 25.1% of LegalReasonBench's are defective. To be clear, this audit does not suggest that the benchmarks are flawed relative to industry standards, and Harvey's research team welcomed the feedback and told me they would use it to improve future versions of the benchmark. Rather, the audit illustrates the challenges of translating lawyer judgment into machine-readable rubrics at scale and raises the question of how and whether AI researchers can be confident that measured gains in legal benchmarks correspond to meaningful improvements in legal capabilities.

One of LegalReasonBench's litigation assignments illustrates the issue. In the task environments, AI models are told they represent a plaintiff who has filed a medical malpractice case in Cook County (Chicago) and need to draft a brief opposing the defendants' motion to transfer venue to a different county where the defendants reside. The defendants' brief argues, as one reason for the transfer, that the Cook County courts have only a 60.5% clearance rate, but the report from which this statistic is taken is included in the environment and makes clear that the defendants' argument is misleading. It conflates criminal and other cases with the clearance rate for civil matters, which is the relevant rate for a medical malpractice case and is much higher. The expert-written rubric indicates that the model drafting the plaintiff's brief should be penalized if its brief "states" that the report shows a 60.5% clearance rate. The expert presumably meant to make the point that the model should not *endorse* or *adopt* defendants' position that the 60.5% clearance rate is the relevant comparison. The task presumably wants to check that the model realizes the defendants' statistic is misleading and thus refrains from endorsing it in the opposition brief. But the AI judges interpret "states" literally: one of the AI models we tested on the benchmark, Claude Opus 5.5, dealt with the defendants' argument exactly the way a good lawyer would have—only to be punished for it. Under the heading "Defendants rely on the wrong statistic," it stated the defendants' figure, explained that the statistic lumps together criminal, traffic, family, and juvenile matters with civil cases, and it cited the civil case statistic that actually matters: 97.9% for Cook County and 96.3% for the proposed forum—meaning, if anything, that on defendants' preferred measure, plaintiff's chosen forum of Cook County was better. But all three AI judges imposed a 30-point penalty on Opus for

that response (the heaviest penalty weight in the assignments I reviewed), because the rubric as written literally requires the agents not to mention the statistic at all, not even to refute it—even though that's exactly what a good lawyer should do. Holding every other grade fixed, that one penalty took the assignment score from 86% to 45%.

I observed several other kinds of defects in the audit. In several instances, criteria simply got the law wrong—or demanded that models assert a fact that was contradicted by the task environment provided to the model. Some rubrics required models to take a particular position on a question of professional judgment where, in my view, the best lawyers either would reach a different position from the one the rubric required or at least would consider a position that the rubric would fail to reward at least as reasonable as the rubric's preferred position.

Section 2 reports the results of the audits. Section 3 explains how professional judgment can be evaluated, sorts the defects I observed into four recurring groups, and gives examples of each. Section 4 explores what implications this might have for legal-domain evaluations and training, beginning with the design of the reward itself. The appendices have a detailed write-up on each criterion I reviewed, with notes on how the AI models we tested performed on those criteria and a narrative description of my reasoning for each determination I made.

2 Audit design and results

2.1 The benchmarks

Harvey AI Corporation, the leading vertical legal AI company today, released LAB in May 2026. In recent model releases, LAB has been the most widely cited legal benchmark used by frontier labs to illustrate the legal capability of their current frontier models. The initial release had roughly 1,250 tasks across 24 practice areas (of which litigation, the area I audited, is just one) and more than 75,000 expert-written rubrics. Harvey has said LAB uses real client matters handled by practicing lawyers as inspiration for AI-generated task documents and environments [8]. Harvey uses AI generation to get around the difficulty of getting clients to share real legal documents, which risks waiver of privilege over internal materials. Each LAB criterion is a binary pass or fail. Somewhat unusually, Harvey took the position that in legal work missing even one issue is a critical mistake, so a task is graded successful only if every criterion passes. A portion of the benchmark is open source on GitHub and available for lawyers to audit, while a separate private hold-out set is used to report LAB results on the Artificial Analysis leaderboard [14]. Harvey says it started from real client matters, split them into tasks, and had the rubrics written and reviewed by experts; its launch post names Mercor and Snorkel AI as contributing research groups, and a later talk by Harvey's co-founder describes those providers as running expert review and verification of every generated LAB task [7, 8]. In comments on an earlier draft of this paper, Harvey told me that the outside providers had a more limited role on the public LAB tasks than on the held-out set used for the Artificial Analysis evaluation. A public clarification by one of LAB's authors describes substantial internal lawyer review [9]. I audited the 52 tasks and 2,858 criteria in the public litigation and dispute resolution folder at Harvey commit `1dd81403`.

micro1 is a data and research lab that produces reinforcement learning environments used by frontier labs to improve their models, in legal and several other domains, using experts such as practicing attorneys to help with the work. LegalReasonBench has 50 matters, 122 assignments, and 2,236 criteria, of which 353 are penalty criteria. micro1 states that a practicing lawyer created each assignment, the associated case file, and its rubrics [13]. It also reports a three-judge classification

of its criteria into IRAC categories with high agreement, which is a classification, not a substantive validation of each criterion. The open-source public sample on Hugging Face has 15 assignments and 221 criteria. I audited a litigation subset that covers 11 assignments, with 179 criteria across four matters. At least three of the four appear to be adapted from real cases with names and some facts changed. Each criterion carries a point value, and a panel of three AI judges decides each criterion by strict majority. An assignment's score is the points earned on the positive criteria, less any penalties the judges impose, divided by the total points available on the positive criteria; a negative total counts as zero. The dataset I reviewed is pinned on Hugging Face at revision `1bfa904c` [5]. Neither release permits reconstructing the review history of a disputed criterion.

There are two noteworthy differences between the benchmarks: LAB's all-pass scoring rule means that one failed criterion results in a zero on an otherwise excellent deliverable, while LegalReasonBench imposes a points-based penalty but does not zero tasks for defects. Additionally, while both benchmarks use synthetic environments, the task environments in Harvey's LAB are primarily synthetic with no recognizable connection to real cases, whereas micro1's LegalReasonBench tasks plainly are adapted from real litigation matters. There were tradeoffs and different failure modes associated with each of these approaches (Section 3.7).

2.2 AI screening and two sampling frames

To conduct the audits, I gave GPT-6 Sol and Claude Opus 5.5 examples of defective rubrics and asked them to flag any defective or arguably defective criteria. For LAB, Sol flagged 616 criteria and Opus flagged 650; after Opus reviewed Sol's findings, 835 criteria (29.2%) were flagged by one model or both. For LegalReasonBench, Sol flagged 51 criteria and Opus 43; between them they flagged 63 of 179 criteria (35.2%), and a later reconciliation pass retained 36 of the 63 [5]. In both audits an Opus pass was permitted to review both models' findings. The procedures differed in some details, chiefly that the LAB sampling frame was fixed after that review and the LegalReasonBench frame before it (Appendices D and E). Those differences affect which criteria were eligible for sampling, not the validity of either lower bound: each bound counts only the defects found in that benchmark's frame and treats every criterion outside the frame as sound. This was intended to operate as two standalone reviews of these benchmarks, not a formal statistically valid comparison of the defect rate between them.

2.3 The standard I applied

After the AI agents flagged defective or arguably defective criteria, I drew a simple random sample of 25 criteria without replacement, with a fixed seed, using a sampling protocol that was committed before the draw [2, 6]. Rubrics where the answer key contains legal or factual errors, or rests on objective discrepancies or errors in the task environment, were considered defective and labeled objectively incorrect.

An additional set of rubrics were labeled defective as a matter of professional judgment; this was used in situations where the rubric required a decision that, in my view, top lawyers would consider inaccurate. Professional judgment defects also include a few instances where the rubric would fail a response that, in my view, most lawyers would see as a judgment call—and the rubric effectively forces the AI model to take one particular position on an issue where there is actually room for debate, which can itself be a kind of legal error. For example, LegalReasonBench required advising a governmental client who lost an administrative review petition in district court to both appeal the loss and redo the decision at the agency; that's a reasonable judgment, and probably the default

path most lawyers would take, but in my view it's erroneous to require that recommendation in the internal memo to the client. The circumstances of that case are such that the client's objectives could be fully achieved by simply redoing the decision at the agency level and forgoing the appeal (which likely would become moot once the agency reinstated its decision with new reasoning). Thus, in the context of the assignment for an internal memo, the rubric ideally would present both options to the client and allow the client to decide whether the added expense of the appeal is worthwhile instead of simply assuming that appealing the adverse ruling is the best approach.

After preparing my initial draft of the verdicts, I asked AI models (GPT-6 Sol, GPT-6 Astra, Claude Opus 5.5, and Claude Fable 5.1) to stress test them and argue both sides of each call, then did a consistency pass through the full set. A handful of verdicts changed based on the AI-assisted stress testing and additional review that I did.

2.4 Native runs and citation checks

I ran both benchmarks on GPT-6 Luna (xhigh reasoning) and Claude Opus 5.5 (low reasoning), using each benchmark's own code (including the benchmark's harness, judge models, and scoring code). This was intended merely as a diagnostic, not a model comparison, to understand where a given rubric might pass for one model but fail for the other and whether that was based on genuine differences in the quality of the legal work product or pointed to potential defects in the rubrics (Appendix A).

The rubric audit revealed that some of the task documents on Harvey's LAB contained hallucinated case law; some of the LAB answer keys similarly referred to hallucinated cases. I had AI agents check every citation in the LAB litigation environments against CourtListener, then reviewed a random sample of the flagged citations myself under a pre-committed stopping rule (specifically, I drew 20 and committed in advance to stop after the first 10 if all 10 were confirmed errors, and otherwise to review all 20). A separate AI citation census covered the LegalReasonBench litigation documents (Appendix B).

2.5 Results

Table 1 reports the results. As noted, this analysis was designed as two distinct audits of the benchmarks, not a statistical comparison of defect rates. The one-sided 95% lower bounds of 383 and 45 are 13.4% and 25.1% of the respective audited populations, the point estimates 18.7% and 29.6%. Note that the bounds cover sampling uncertainty, not uncertainty about the accuracy of my verdicts, and in both benchmarks, there are cases where several sampled criteria share one underlying problem, so the verdicts are not truly independent. Regardless, the results establish that defects likely occur at rates that significantly exceed the differences in criterion pass rates that separate frontier models on these benchmarks. The exhibits in Section 3 establish what they do.

In LAB, 9 of the 16 defective criteria are objective errors, such as these: the environment's time entries add up to $215,680, not the answer key value the rubric assumes of $193,372.50; the rubric states the opposite of Georgia tortious-interference law; the rubric finds a conflict in a preservation notice that contains none. The other seven fail work an elite lawyer could consider at least as good as what the rubric requires. In LegalReasonBench, 7 of 21 are objective errors, and the remaining 14 are errors of professional judgment; 6 arise from the task materials rather than the criterion alone.

In cases where both AI auditors considered a rubric defective, they were almost always right. In LAB, 9 of the 10 criteria flagged by both models were defective, compared with 7 of 15 flagged by

	Harvey LAB public litigation tasks	LegalReasonBench public litigation assignments
Audited scope	52 tasks	11 assignments in 4 matters
Criteria	2,858	179
AI-flagged frame	835	63
Human-reviewed sample	25 (19 tasks)	25 (9 assignments)
Defective	16	21
of which objective error	9	7
of which professional judgment	7	14
Arguable	3	0
Not defective	6	4
In a task environment with a defect	14	12
Defective within frame, point estimate	534	53
Defective within frame, 95% lower bound	383	45
as a share of all audited criteria	13.4%	25.1%
Objective errors within frame, lower bound	171	11

Table 1: Human review of random samples of AI-flagged criteria. The frames differ (Section 2); the lower bounds are exact one-sided 95% hypergeometric bounds within each frame, conditional on the reviewer's verdicts. Point-estimate shares of all audited criteria are 18.7% and 29.6%.

one; in LegalReasonBench, all 12 flagged by both blind reports were defective, compared with 9 of 13.

The two model runs we did with the benchmarks illustrate how much all-pass scoring (used in Harvey's LAB) impacts the results. Across the 52 LAB litigation tasks, averaging each judge's per-task pass fraction, GPT-6 Luna passed 83.8% of criteria and Claude Opus 5.5 passed 90.8%. The all-pass rate, by contrast, was 1.9% for Luna and 2.9% for Opus, and each model passed exactly one task outright with both judges. Under LAB's all-pass approach, one defective criterion is enough to fail a task. Thus, LAB's headline number is unusually sensitive to the correctness of each criterion.

I also did a sweep for hallucinated case law, which found a significant number of hallucinations in Harvey's LAB (likely owing to the synthetic data used to create it). Within LAB's litigation environments, an AI check of 3,618 citations found 436 seemingly unintentional errors in citations to real authority, including 76 authorities that could not be found. I reviewed a random sample under a pre-committed stopping rule and confirmed that the first ten of ten were all true citation errors. Statistically, the lower bound is that at least 303 of the 436 are real errors. While a similar AI audit yielded some instances where cases were mischaracterized in LegalReasonBench, it did not flag any hallucinated cases.

3 How the criteria misgrade legal work

This section states the standard against which I judged professional judgment, sorts the defective criteria into four recurring groups, and walks through the leading examples of each. The exhibits are organized by mechanism, not by benchmark. Each gives the task context, the criterion as written, my assessment, and how the benchmark's own judges graded the saved runs. Table 2 assigns every criterion I found defective to a group with a one-line statement of the problem. The complete review of all 50 sampled criteria is in Appendices D and E.

3.1 Constraints, latitude, and quality

Suppose the posted limit is 55 miles per hour. Driving at 60 breaks the rule. Driving at 54 in dense fog may still be negligent, because the law also requires a speed that is reasonable and prudent under the conditions; New York's statute states both requirements in one section, Veh. & Traf. Law § 1180(a), (b). An examiner who passes the 60 has contradicted the rule. An examiner who passes every speed below 55 has ignored the standard. And an examiner who insists that the only competent speed in fog was exactly 35 has turned one reasonable choice into the sole correct answer, which the law never did.

Legal work mixes the two kinds of question throughout, and evaluating it means asking three things. What constrains an acceptable answer: the record, the arithmetic, the governing law, and the assignment. What choices remain defensible within those constraints: strategy, emphasis, selection, and presentation. And what makes one defensible answer better than another: persuasiveness, materiality, economy, and usefulness to the reader. Legal theory draws the first line as rules against standards [27], and appellate review draws something like it: conclusions of law are reviewed de novo, discretionary decisions only for abuse of discretion, and the reviewing court may not substitute its preference for a decision inside the permitted band. The analogy is an analogy. Rules can be ambiguous, standards can be clearly violated, and a court "by definition abuses its discretion when it makes an error of law," *Koon v. United States*, 518 U.S. 81, 100 (1996). But the structure is the right one for a lawyer's work. *Strickland v. Washington*, 466 U.S. 668, 688–89 (1984), recognizes "a wide range of reasonable professional assistance" and explains that "[n]o particular set of detailed rules for counsel's conduct can satisfactorily take account of the variety of circumstances faced by defense counsel or the range of legitimate decisions regarding how best to represent" a client. *Strickland*'s floor is too low to define excellent work. Its recognition that competent lawyers legitimately differ is what a rubric that fails the omission of an $11,000 rounding point lacks.

The closest prior work in the evaluation literature draws the same line from German examination law, under which a defensible and consistently argued solution may not be marked wrong, while weak argument may still earn fewer points: "Latitude protects the result, not the mark" [17]. Nagl favors rubric-centered grading for auditable legal assessment and identifies defensible alternatives and follow-on errors as the largest open validation gap. That is the gap this audit documents in two live benchmarks.

3.2 Four recurring defects

The defects fall into four recurring groups. Some criteria require answers contradicted by the law, the record, or the arithmetic. Others misstate the behavior they are meant to assess, penalizing a rebuttal as an endorsement or imposing requirements the assignment does not justify. A third group rewards unsupported representations, including statements that contemplated evidence has already been obtained. A fourth substitutes mandatory inclusion, or a predetermined strategy, for professional judgment about what is useful, proportionate, and persuasive. In the terms of Section 3.1, the first group gets a constraint wrong; the second and third fail or credit an answer on the wrong ground; the fourth treats a question inside the band of discretion as if it had one answer. Defects in the task materials sometimes produce these failures, and the judges and the scoring rule can magnify them (Section 3.7).

Every criterion I found defective, 16 in LAB and 21 in LegalReasonBench (abbreviated LRB in the table), falls into at least one group. Table 2 gives each a primary group; the item numbers are the appendix entries, where the full analysis appears. The groups are recurring mechanisms in these

samples, not a mutually exclusive taxonomy of everything that can go wrong with a legal rubric, and several criteria illustrate more than one. The purchase-history criterion (LAB item 19) rewards a wrong figure and conceals a gap in the record. The discovery-objection criterion (LAB item 15) requires a questionable objection and then requires it twice. The motion-to-dismiss criterion (LAB item 18) gets the procedural standard wrong and, in doing so, would also put a losing argument in front of the judge. The objective-error and professional-judgment labels in the appendices record the basis for each verdict; the groups describe the mechanism. The first group coincides with the 9 LAB and 7 LegalReasonBench criteria coded as unambiguous objective errors; the other three groups are the professional-judgment defects.

Table 2: The 16 LAB and 21 LegalReasonBench (LRB) criteria I found defective, by primary group. Item numbers are the appendix entries (Appendices D and E); LAB criteria carry Harvey's identifiers, and LegalReasonBench criteria the dataset's numeric identifiers where they have one. Several criteria also fit a second group (Section 3.2).

Item	Task	The problem
Errors of law, fact, and source interpretation (16)		
Errors of law		
LAB 23 (C-020)	Jury-instruction review	States the opposite of Georgia tortious-interference law; the source order cites a case that cannot be found
LAB 17 (C-037)	Motion to dismiss brief	Demands Delaware parol-evidence authority on the wrong doctrine; the named cases do not say what the memo claims
LAB 18 (C-045)	Motion to dismiss brief	Requires arguing disputed causation facts on a Rule 12(b)(6) motion
LAB 13 (C-008)	Interrogatories	Requires defining "document" although the court's local rule already defines it
LRB 1	Land use, assignment 1	Penalizes a date the petition supplies, under a county rule that does not apply by its terms
LRB 6	Land use, assignment 1	Rewards a withdrawal date neither party asserted, under the same inapplicable rule
LRB 5	Land use, assignment 1	Applies a statute that protects unchallenged approvals to an approval that was timely challenged and quashed
LRB 10 (crit. 4)	Police discipline, assignment 2	Rewards asserting that no authority requires proving the comparators; *Douglas* and MPD's own notice put the burden on MPD
LRB 21 (crit. 21)	Jury instructions, assignment 1	Rewards a forcible-felony bar to self-defense that applies only to an independent felony
Errors of fact and arithmetic		
LAB 1 (C-049)	Invoice staffing review	Expected 17.2% overage rests on a subtotal the invoice's own time entries contradict (30.7%)
LAB 3 (C-029)	Discovery gap memo	Miscounts the documents and treats five as "thin" evidence of damages
LAB 19 (C-028)	Interrogatory responses	Canonical figures are calendar-year data for a contract-year request the record cannot answer
LRB 9 (crit. 8)	Police discipline, assignment 1	Rewards finding a date conflict the comparator memorandum does not contain
LRB 23 (crit. 4)	Jury instructions, assignment 2	Rewards asserting a lack of evidence on who fired first; the closed-universe facts say who did
Errors in reading interacting provisions		
LAB 20 (C-002)	Preservation notice memo	Treats an express longer period for one record category as a conflict needing DOJ clarification
LAB 25 (C-042)	Invoice compliance review	Treats business-class airfare the policy expressly permits as a borderline issue

continued on the next page

Item	Task	The problem
Mis-specified tests and unjustified requirements (7)		
Presence mistaken for function		
LRB 16 (crit. 18)	Forum non conveniens, assignment 2	−30 for stating the opponent's 60.5% figure, even to rebut it
LRB 22 (crit. 23)	Jury instructions, assignment 1	−5 for mentioning an unrelated guilty plea, even to set it aside
LRB 13 (crit. 22)	Forum non conveniens, assignment 1	−30 for mentioning that Cook County lacks interest, even to refute the defendants' argument
Requirements the assignment does not justify		
LAB 6 (C-049)	Conflict check memo	Requires firm-wide conflicts-process recommendations in a memo clearing one engagement
LAB 9 (C-003)	Product-liability assessment	Requires the fatality to appear in the executive summary of a memo that discusses it elsewhere
LRB 24 (crit. 7)	Jury instructions, assignment 2	Grades a supplement as though a fully rewritten brief were clearly requested
LRB 25 (crit. 8)	Jury instructions, assignment 2	Same
Rewarding unsupported representations (6)		
LRB 14 (crit. 1)	Forum non conveniens, assignment 2	Rewards stating that the brief is supported by a physician's affidavit that does not exist
LRB 17 (crit. 3)	Forum non conveniens, assignment 2	Same, second physician
LRB 18 (crit. 6)	Forum non conveniens, assignment 2	Rewards saying a nonexistent affidavit shows DuPage County inconvenient for the affiant
LRB 19 (crit. 8)	Forum non conveniens, assignment 2	Same, second physician
LRB 20 (crit. 9)	Forum non conveniens, assignment 2	Same, third physician
LRB 15 (crit. 11)	Forum non conveniens, assignment 2	Rewards citing the plaintiff's own affidavit, which is not in the record
Selection and professional judgment (8)		
Work whose cost exceeds its value		
LAB 16 (C-009)	Motion in limine	Fails a motion that omits an $11,000 rounding difference offered as a *Daubert* ground
LAB 4 (C-025)	Case assessment memo	Requires recommending a motion to dismiss that would not reduce exposure or narrow discovery
LAB 15 (C-028)	Discovery responses	Requires a questionable legal-conclusion objection, then requires repeating it in the strategy memo
One reasonable choice made mandatory		
LAB 2 (C-012)	Privilege log	Fails "fully privileged" for counsel's meeting notes, the better answer
LAB 5 (C-030)	Conflict check memo	Requires screening when informed consent with a confidentiality protocol is permissible
LRB 2	Land use, assignment 1	−30 for recommending a construction pause that the cited Florida Supreme Court reasoning supports
LRB 3	Land use, assignment 1	Requires an appeal when curing the defects on remand alone could achieve the county's objective
LRB 4	Land use, assignment 1	Requires remand "while an appeal is pending," rejecting a remand-only recommendation

3.3 Errors of law, fact, and source interpretation

In the largest group the rubric's expected answer is wrong. It misstates the governing rule, misreads a document, contradicts the supplied facts, or relies on arithmetic that does not hold. Three subtypes recur: errors of law, errors of fact or arithmetic, and errors in reading a provision together

with its exceptions.

Errors of law. The jury-instruction task requires the memo to explain that under Georgia law tortious interference with a contract does not require an independently wrongful act while interference with business relations does; Georgia applies the same elements to both, and the fictional summary-judgment order from which the rubric's law seems to be taken cites a case that cannot be found (LAB item 23). A LegalReasonBench land-use criterion rewards invoking Fla. Stat. § 163.3167(10) to protect the county's development order, but that statute protects an approval no one challenged when a later case invalidates the regulations behind it; here the approval itself was timely challenged and quashed (item 5). Two criteria in the same matter rest on a county rule that by its terms governs only remands from the Board to the hearing examiner, and the record shows a remand from the examiner to staff (items 1 and 6). The jury-instruction matter rewards arguing that the defendant's plea to conspiracy bars a justification defense under Iowa Code § 704.6, a bar that applies only to a forcible felony independent of the act claimed to be justified (item 21). Two more legal errors come from a single LAB task and show how an error in the environment propagates into the rubric.

LAB's motion-to-dismiss drafting task asks for a Rule 12(b)(6) brief seeking dismissal of a software-licensing complaint. Criterion C-045 requires the brief to identify the plaintiff's own failures, a 45-day project-manager gap and late API specifications, "as causes of the Go-Live delay." Those facts come from the defendant's internal report, which the complaint disputes. On a motion to dismiss the court takes the complaint's allegations as true, and it does not resolve contested questions of causation. Both saved briefs left the argument out, and both were failed on C-045 by both judges. The rubric penalized the one procedural judgment on which both models were right.

A neighboring criterion on the same task, C-037, shows how an error in the environment propagates into the rubric. It requires the brief to cite "relevant Delaware authority on the parol evidence rule and integration clauses, such as SIGA Technologies v. PharmAthene or Eagle Industries v. DeVilbiss." The task's research memo quotes both cases for propositions that do not appear in them: the language about integration clauses attributed to *SIGA* is not at the cited page, which concerns the duty to negotiate in good faith, and the holding attributed to *Eagle* is not in *Eagle*. The rubric also asks for authority on the wrong doctrine. Under Delaware law the parol evidence rule and an integration clause do not bar a fraud claim; the question for the fraud count is whether the plaintiff can plead reliance on pre-signing representations despite the contract's non-reliance language. Opus declined to cite either named case, cited Delaware anti-reliance authority instead, and was failed by both judges. A rubric built from an unchecked memo inherits the memo's mistakes, and here it failed the brief that caught them. The citation check found problems in 28 of the 53 citations in this task's documents.

Errors of fact and arithmetic. The invoice task fixes the budget overage at 17.2%, which is what the invoice's summary page shows; its 117 time entries add up to $215,680, which puts the overage at 30.7% and far outside the rubric's tolerance (LAB item 1). The discovery-gap criterion requires the memo to say that only five documents relate to the counterclaim damages, and a sixth plainly does (item 3). The interrogatory-response criterion supplies calendar-year purchase figures as the canonical answer to a request for contract-year purchases that the record cannot answer (item 19). In LegalReasonBench's jury-instruction matter, 25 points are awarded for noting a lack of evidence about who fired first, and the task's closed-universe statement of facts says who fired first (item 23). The police-discipline date criterion is the clearest case of the subtype, and it is paired

below with a LAB criterion from the next one.

Errors in reading interacting provisions. Reading a provision together with its qualifications and exceptions is a transferable skill, and two criteria get it wrong. A travel policy permits business class on domestic flights of four hours or more, and the rubric treats a flight it describes as four hours and twenty minutes as a borderline issue that must be flagged for discussion (LAB item 25). The other is the preservation notice.

"No conflict" is an answer. Two criteria, one in each benchmark, require the model to find a discrepancy that is not there. In LAB's preservation-notice task, a Department of Justice notice defines the relevant period as January 1, 2019 forward, "unless otherwise specified herein," and then provides that "[n]otwithstanding the Relevant Period defined in Paragraph 12," certain financial records must be preserved from January 1, 2017. Criterion C-002 requires the memo to recommend seeking clarification from the DOJ "regarding the conflicting date ranges." There is no conflict. The notice sets a general period and an express longer period for one category, which is a common and clearly drafted request. Luna's memo read it correctly, said the two periods were complementary, and was failed by both judges. Opus's memo was failed by one judge and passed by the other, on the strength of an unrelated clarification request about category numbering.

In LegalReasonBench's police-discipline matter, criterion 8 of the first assignment awards 28 of 71 available points for identifying "that the comparator memorandum's stated coverage years conflict with the dates of the cases it summarizes."

Quoted from micro1 LegalReasonBench

> **Reward criterion, +28 points.** Identifies that the comparator memorandum's stated coverage years conflict with the dates of the cases it summarizes.

— micro1 LegalReasonBench, `criterion_8`, police discipline, assignment 1, rubric at revision `1bfa904c`

The memorandum says it reviewed records covering calendar years 2018 through 2021. Its four cases arose in August 2018, November 2019, May 2020, and March 2021 and were resolved between January 2019 and October 2021. Every date is inside the window. Both saved responses correctly reported no conflict and received zero of 28 points. A response that invented one would have been paid for it. These two are accessible to readers without litigation experience, and they show the cost of a rubric that always needs one more issue. Recognizing that there is nothing to flag is a skill. A rubric can reward the conclusion that there is nothing to flag; these criteria instead presuppose a conflict, so the only way to earn the points is to assert one.

3.4 Mis-specified tests and unjustified requirements

In the second group the rubric's objective may be sensible, but the written requirement does not capture it. Two patterns recur. In the first, the criterion tests for the presence of a statement rather than its function. In the second, it grades against a requirement the assignment did not set. In both, the rubric substitutes a particular textual form or deliverable for the substantive quality it should assess.

Mention is not endorsement. The 60.5% penalty that opens this paper is the clearest case.

Quoted from micro1 LegalReasonBench

> **Penalty criterion, −30 points.** States in Assignment #2 that the 2023 Illinois Annual

> Report Statistics report a 60.5% clearance rate in Cook County, Illinois.
>
> — micro1 LegalReasonBench, `criterion_18`, forum non conveniens, assignment 2, rubric at revision `1bfa904c`

The report in the record does say 60.5%. The defendants' motion relies "principally" on it. A response brief has to answer it, and the rubric's own criteria 19 and 20 reward the answer, which is the civil-case comparison. The persuasive way to make that point is to name the defendants' figure and show what it measures. The penalty judge, however, sees only the criterion text and is told to answer pass if the response commits the failure. Both saved responses were penalized by all three judges. Opus's brief set out the civil rates and explained why the all-case rate is the wrong comparator; Luna's said the figure "expressly covers all case types" and gave it limited weight. Only a brief that relied on the 60.5% figure as the right measure of congestion should be penalized. I coded this as a professional-judgment defect: the text, the votes, and the point contribution are observable facts, and the assessment that quoting an adversary's figure to rebut it is permissible advocacy is a professional conclusion. It is not a close one.

The same mechanism appears in the criminal appeal, where a −5 penalty fires if the brief "mentions" that the defendant pled guilty in state court to intimidation with a dangerous weapon. The plea concerns a different incident, and the criterion is plainly meant to test whether the model keeps the two apart. Opus was penalized, two votes to one, for a drafting note that told the supervising lawyer it had decided *not* to rely on the other incident because it was unrelated. A note that mentions a fact in order to set it aside is correct work. The first forum non conveniens assignment has a third penalty of the same form ("Mentions … that Cook County lacks interest"), which did not fire on the saved runs but would fire on a memo that stated the defendants' argument and then explained why the uploaded authority defeats it. What these criteria share is that they test for the presence of a proposition rather than its function. In legal writing the function is everything: the same sentence is a concession in one paragraph and the setup for a rebuttal in the next.

The distinctions these criteria miss are ones every brief turns on: adopting an opponent's proposition versus quoting it to rebut it; relying on an unrelated event versus explaining why it has been set aside; presenting a proposition as true versus identifying it as a contention that needs investigation. The clearance-rate and unrelated-incident penalties are the strongest exhibits because the saved grades show the problem occurring; the Cook County interest penalty has the same form but did not fire on the saved runs.

Requirements the assignment does not justify. The second pattern grades the response against an assignment the model was not given. A conflicts criterion requires a memo clearing one engagement to recommend integrating the firm's annual disclosure questionnaires with its conflicts database, a firm-wide process recommendation that is not the assignment, and it failed a memo that did everything a clearance memo needs on that point (LAB item 6). A case-assessment criterion requires the executive summary to mention the fatality; both saved memos discussed the death in several places, including the factual background, and summarized the legal exposure up front, and both were failed by one or more judges (item 9). In LegalReasonBench's jury-instruction matter, the second assignment asks the model to build on its first brief by adding a newly decided case, and five of the first assignment's criteria are then applied to the second output, so a model that writes the supplemental material the prompt describes forfeits them (items 24 and 25). In each case the criterion rewards a particular form or deliverable rather than the quality the assignment called for.

The boundary matters, and the rejected flags mark it. A requirement need not be spelled out

in the prompt to be legitimate. I accepted a criterion requiring priority tiers for custodians in a discovery plan, because the court had invited phased discovery and prioritization is a standard expectation (LAB item 11), and a criterion rewarding an internal memo for noticing that the agency decision misstated the length of the suspension it affirmed, because the prompt directed the associate to anchor each argument in the decision's findings and a careful lawyer would catch it (LegalReasonBench item 11). The question is whether the requirement follows reasonably from the assignment and its context, not whether the prompt named it.

3.5 Rewarding unsupported representations

The third group rewards a model for presenting something as established when the materials do not support that status: contemplated affidavits become affidavits already executed and sworn; proposed witness testimony becomes testimony the witness has approved; a figure the record cannot supply is supplied anyway, without acknowledging the substitution. The affidavit criteria are the leading example.

Proposed evidence is not evidence. The second forum non conveniens assignment asks for the opposition brief and says, "Please include all affidavits and information you referenced from Assignment #1." The record names five Cook County physicians a lawyer on the team has spoken to and reports that they are willing to testify. No affidavit from any of them, or from the plaintiff, is in the record, and the prompt states that a document not uploaded "does not exist for purposes of this analysis." Ten criteria then award points for stating that the response is supported by each physician's affidavit and that each affidavit shows DuPage County would be inconvenient for the affiant, and an eleventh does the same for the plaintiff's own affidavit; six of the eleven were in my sample.

> Quoted from micro1 LegalReasonBench
>
> **Reward criterion, +3 points.** States in Assignment #2 that the response is supported by the affidavit of Liam Vance, a physician who provided care to Baby Davis at Cook County Hospital.
>
> — micro1 LegalReasonBench, `criterion_1`, forum non conveniens, assignment 2, rubric at revision `1bfa904c`

Opus's brief states that "Plaintiff submits sworn affidavits from five named Cook County treating physicians" and that "[e]ach of the five treating physicians has executed an affidavit in the same form . . . separately signed," then attaches one unsigned template with "[Name]" and "[specialty]" blanks. All three judges credited it. Luna's brief, which identifies the five as physicians "with whom counsel has spoken" and cites no affidavit, received nothing on these criteria. The instruction can be read to invite drafting proposed affidavits, and drafting a form for a witness to review is ordinary practice. What the criteria reward is a representation to the court that supporting evidence has already been executed and sworn. A nonparty witness decides what she is willing to swear to, and five physicians do not sign one lawyer's form on schedule. The hazard is that a human lawyer, through inadvertence, files a brief that says the affidavits exist. The scoring system credited the representation and gave nothing to the brief that declined to make it. I coded these as professional-judgment defects arising from the environment, because the drafting instruction admits competing readings; the fix is either to supply executed affidavits or to reward bracketed placeholders that say the affidavits are contemplated.

A useful draft makes unfinished evidentiary work visible. A bracketed reference to a contemplated

affidavit tells the lawyer what remains to be obtained; an unqualified statement that five physicians have executed affidavits hides that dependency. Calling the document a draft does not make those two outputs equally useful or equally safe. In Illinois, where the matter is pending, the signature on a filing certifies after reasonable inquiry that it is well grounded in fact, and Illinois Supreme Court Rule 137 permits sanctions for a violation. Sanctions are a consequence the lawyer risks, not the test of the defect; the defect is that the reward points toward the unsupported representation.

The mechanism is not confined to affidavits. The LAB interrogatory-response criterion discussed above (item 19) passes a response that answers a contract-year request with calendar-year figures and never says so; the rubric approves an answer that conceals a gap in the evidence. Two LAB counterclaim criteria sit at the edge of the group: they require pleading infringement of a patent the record does not contain, which I coded as arguable rather than defective because a draft could plead the count and flag it for verification (items 7 and 8).

A rejected flag in the land-use matter marks the boundary. Two criteria there reward a brief for citing the expert testimony and the staff report that supported the county's rezoning. Neither document is attached, and the auditors flagged both criteria on that ground. But the petition quotes the testimony with transcript citations, and other supplied documents establish that the staff report exists. A competent lawyer would cite both. A missing attachment does not bar a supported inference; the defect in the affidavit criteria is that proposed evidence silently becomes completed evidence. Both saved responses failed both land-use criteria, which is the benchmark working as intended.

3.6 Selection and professional judgment

The fourth group does not contradict the record or the law. It takes a question on which the best lawyers would differ and fails every answer but one. Two failures need to be kept apart. In the first, the required argument or action costs more than it is worth. In the second, the required course is reasonable but not uniquely so, and the criterion rejects another defensible choice. The first is a claim that the rubric's answer is poor; the second only that it is not the only answer. The audited criteria do both.

Work whose cost exceeds its value. LAB's motion in limine task is the example I present with the most care, because it is the one where I am applying judgment rather than reading a source. A damages expert's report itemizes five categories that sum to $14,211,000 and states total damages of $14,200,000. At her deposition she called it a rounding discrepancy. The task's strategy memo treats it as an "arithmetic error" and a ground for excluding her testimony under *Daubert*, and criterion C-009 fails any motion that does not identify the discrepancy; its unsampled companion C-010 requires tying it to exclusion. A rounded total is not an error, and an $11,000 error in a $14.2 million calculation would not be a basis for exclusion in any event; at most it would get the erroneous figure replaced with a corrected one, which raises the client's exposure by the amount the expert rounded off. Raising the point also carries a real risk of annoying the judge: a motion that spends the court's time on a rounding difference signals that the movant had nothing better. All four saved grades on C-009 are passes, and the judges split on Luna's treatment of C-010, one failing it for downplaying the point; the defect here is a potential failure, not an observed one. My view is that the better motion leaves the discrepancy out and concentrates on the real methodological problems with the report. Another advocate might put it in a footnote. What the rubric does is make omission a failing answer, and under all-pass scoring that means a motion that keeps the court's attention on the strong arguments fails the task. I coded C-009 as a professional-judgment

defect, not an objective error.

A case-assessment criterion requires recommending a motion to dismiss an unjust-enrichment count pleaded in the alternative to a contract claim the rubric itself calls strong, where the motion would not reduce exposure or narrow discovery; a careful memo could weigh that cost and advise against filing (LAB item 4). A discovery-response criterion requires the strategy memo to recommend objecting that a request for admission calls for a legal conclusion, an objection the modern view does not support, and then fails a response that made the objection in the responses themselves but did not repeat it in the memo (item 15). Recognizing a possible argument is not enough to justify making it, because a weak argument is not free. It consumes space and attention the stronger arguments need. It gives the opponent an easy target around which to organize the response. And it invites the judge to question the lawyer's judgment and to read the remaining arguments with more skepticism. The quality of an argument affects the reception of the document around it (Section 4.2).

One reasonable choice made mandatory. A conflicts-memo criterion in LAB requires recommending that an associate who shares an apartment with his sister, a paralegal at the adverse party, be screened; informed consent with a confidentiality protocol is a permissible resolution, and the same task's other criteria accept consent for comparable conflicts (item 5). A privilege-log criterion fails a response that classifies counsel's handwritten meeting notes as fully privileged, although the meeting was convened on outside counsel's advice about a retaliation claim and even the business sections reflect that advice; partially privileged is defensible, but so is the answer the rubric fails (item 2). In LegalReasonBench's land-use matter, two criteria worth 20 points each require the county's memo to recommend both an appeal and a remand to the hearing examiner. A protective appeal is reasonable and probably the default, but curing the defects on remand without an appeal is a course many government lawyers would prefer, and the criteria give that recommendation nothing; the real county did both, and its own appellate filing acknowledged the remand might moot the appeal (items 3 and 4). In the same matter a -30 penalty fires on a memo that recommends pausing construction until the zoning defects are cured, although the Florida Supreme Court decision the rubric relies on says that construction should not be undertaken until the zoning is fixed (item 2). In each case the required answer is permissible. So is the answer the criterion fails.

3.7 The materials, the judges, and the scoring rule

Defects in the task materials are a source of these failures, not a fifth kind of defective requirement. Synthetic records fail one way and adapted real cases another. LAB's environments are generated, and the generation introduces inconsistencies, some of which a non-lawyer would not notice: a state agency that issues OSHA citations to a private employer in a state with no federally approved plan for private employers; an invoice whose line items do not sum to its subtotal; a complaint that quotes the forum-selection clause it is violating. Appendix C walks through the opposition-issues task in which that complaint appears. Some of these propagate into the answer key, as the invoice and the research memo did; others do not. I coded the sampled criterion on the OSHA task as sound, because the rubric only asked the memo to address the citation and a memo can do that while noticing the environment is incoherent. LegalReasonBench's adapted matters fail differently: twice in my sample the criterion was correct for the real case and wrong for the task, because the task had changed the facts and the rubric had not followed. In the police-discipline matter the rubric rewards the proposition that no uploaded authority requires the department to prove the comparability of its comparator cases, which was the department's argument in the real litigation; in the task, the department's own final notice relies on the comparators, and the uploaded *Douglas*

factors place the burden on the agency. In the jury-instruction matter the rubric awards 25 points for noting a lack of evidence about who fired first, which was disputed in the real case; the task's closed-universe statement of facts says who fired first. Both saved responses declined to assert what the record contradicted and received nothing. 14 of the 25 sampled LAB criteria and 12 of the 25 LegalReasonBench criteria came from environments with a defect of some kind (Tables 8 and 9).

The judges and the scoring rule are a further layer. A judge can misapply a sound criterion or a defective one: one LAB judge passed a memo on the executive-summary criterion by quoting a sentence from the memo's facts section as if it appeared in the summary, and one LegalReasonBench judge failed a brief on four criteria only because the brief carried no "Assignment #2" label, a reference to the prompt that the judge was never shown (LAB item 9; LegalReasonBench item 15). All-pass scoring and large point weights then decide how much a defective requirement or a mistaken grade costs. In LAB one failed criterion zeroes the task; in LegalReasonBench the 60.5% penalty alone moved an assignment from 86% to 45% (Appendix A). These are not additional kinds of substantive error. They determine how consequential the four groups are.

4 Implications for evaluation and training

4.1 Reward design in a judgment domain

The first implication concerns the design of the reward itself. A reward for legal work has to get correctness right before it can measure anything else, and in a judgment domain correctness has two parts: the constraints the law, the record, and the assignment impose, and the latitude that remains inside them. The four groups map onto the questions in Section 3.1. The errors of law, fact, and source (Section 3.3) are constraints the criteria got wrong. The mis-specified tests and the rewards for unsupported representations (Sections 3.4 and 3.5) fail answers no top lawyer would rank below the ones they prefer, or credit answers a top lawyer would refuse to sign. The selection criteria (Section 3.6) choose among answers top lawyers would consider comparable, and under all-pass scoring that choice decides the task.

Two things follow for rubric design. A rubric should enforce constraints, and its author should be held to the sources when it does. A rubric may apply a standard where the judge applying it can add real signal: a page limit can be checked; whether the argument is organized so the court finds the dispositive point first needs a judge that can tell. Comparative judgment can supplement criteria for the third question, which is where excellence lives; on 30 legal tasks, attorneys' pairwise comparisons recovered a constructed quality ordering far better than rubric scores did [18]. One refinement keeps the frame honest. Whether a question has a right answer is independent of whether getting it wrong matters. A typographical error is objectively wrong and immaterial; an unsupported statement that a critical affidavit has been signed is a judgment call with real consequences. The audit did not code materiality separately. A benchmark should, and all-pass scoring, which treats every criterion as material, cannot.

A further question is what a model should do with knowledge from pretraining that the environment contradicts. A good lawyer brings prior knowledge to every record and looks for what seems out of place, and a reward that pays only for working within the supplied documents could, in principle, teach a model to stop doing that. That is a hypothesis about a training mechanism, not something this audit observed.

4.2 More arguments are not better lawyering

One response to the strategy defects is that a criterion which elicits an additional defensible point is at worst harmless: the model learns to raise more. That is wrong. The range of plausible-sounding arguments available in any position far exceeds what a court, an adversary, or a client will consider. A defendant can usually find a colorable objection to venue, process, or service of process, and must raise it in its first response or lose it, Fed. R. Civ. P. 12(h)(1); it is rare that more than one is worth the court's time, and leading with a weak one teaches the judge to discount the strong one. Every lawyer learns to winnow. The Supreme Court said so in holding that appointed appellate counsel need not raise every nonfrivolous issue a client wants raised: "Experienced advocates since time beyond memory have emphasized the importance of winnowing out weaker arguments on appeal and focusing on one central issue if possible, or at most on a few key issues," *Jones v. Barnes*, 463 U.S. 745, 751–52 (1983), and, quoting Justice Jackson, "[l]egal contentions, like the currency, depreciate through over-issue," *id.* at 752.

The reason is attention. There is a context window for the model, and there is also one for the reader: the judge who gives the motion twenty minutes, the adversary deciding whether the letter is serious, the general counsel reading the memo on a phone. A second-tier argument does not sit harmlessly beside the first-tier one. It dilutes it, signals that the author could not tell the difference, and spends credibility the strong argument needed. Practitioners are seeing a version of this now: negotiators complain of AI-generated markups that propose dozens of trivial changes to boilerplate with a settled meaning. That is an observation from practice, not a finding of this audit. But the audited criteria point the same way. A rubric that fails a motion for omitting a rounding point, or a conflicts memo for choosing consent over screening, rewards inclusion over justified omission and supplies no signal that omission was the better choice.

The principle I would extract is this. A benchmark that claims to measure professional judgment must distinguish discovering an argument from deciding that the argument belongs in the deliverable, and it must be able to accept a sound answer its author did not anticipate. Whether an omission is sound depends on the assignment, the audience, the stakes, and the alternatives. A comprehensive internal memorandum should cover more than a brief. That is a reason to write the rubric to the assignment, not a reason to reward coverage everywhere.

4.3 What the scores establish

A defect rate cannot be subtracted from a score. A criterion that misgrades every model the same way leaves the ordering unchanged; a smaller number of criteria that misgrade models differently can move it. Which happened here is unknown, because the audit graded criteria and not model outputs across the full set. What the audit supports is narrower: the robustness of reported performance differences to substantive correction of the criteria has not been established, and establishing it would take paired regrading of actual outputs on the same evaluation set. On the private LAB leaderboard the leading models are separated by a few points of criterion pass rate [14], and the defect share estimated here for the public litigation set is larger than those gaps. That is a reason to ask whether the ordering is robust, not evidence that it is wrong. Coding went through the same cycle: in February 2026 OpenAI stopped reporting SWE-bench Verified after an audit found problems with test requirements and task specification [15]. As models improve, errors a benchmark could once absorb show up as failures of models that are now better than the benchmark.

4.4 What the training gains establish

Three propositions need to be kept apart: that training improves a model's score on a legal benchmark; that it improves the legal work practitioners care about; and that legal specialization improves that work beyond what a comparable frontier model already does. Evidence for the first does not establish the second or the third, and the audit is a direct challenge to the inference between them. If a criterion rewards an unsupported assertion or penalizes a correct rebuttal, improved compliance with it is not evidence of better lawyering, however consistently the judge applies it.

The published results deserve their due, and most are of the first kind. Applied Compute reports full-parameter reinforcement learning on GLM-5.1 with LAB as the reward, graded by a model judge, and an improvement on a held-out LAB split from a 0.853 to a 0.913 rubric pass rate, with the all-pass rate rising from 0.059 to 0.126; its grader was validated by agreement between two frontier models, and no practitioner evaluation of the outputs is described [12]. Harvey's Tenet, trained from a Kimi K3 base by asynchronous reinforcement learning on environments that share LAB's structure, with a model judge over each task's rubric, reports gains on LAB's hold-out set and transfer to two separately developed benchmarks, APEX Agents and RedlineBench [11]; its reported Elo gain of roughly 130 over its base and preference in more than two of three comparisons come from a generative reward model, not from a blinded human trial [10]. Transfer to independently built benchmarks is more informative than improvement on one, and these are substantive training results. Their principal quality endpoint is rubric scoring of the kind audited here.

Two results come closer to the question, and neither isolates it. LegalOne reports a stage ablation on Chinese legal tasks: adding a curriculum reinforcement-learning stage after mid-training and supervised fine-tuning raises its 8B model from 56.37 to 62.36 on JEC-QA and from 68.32 to 71.19 on LexEval [25]. That is a measured RL increment, on smaller models and constrained tasks, without independent validation of professional work. The Thomson technical report supplies two kinds of evidence: a matched comparison of its reinforcement-learning checkpoint against its initialization in the same harness, scored on judge-based dimensions such as factuality and completeness, and a blind comparison in which experts rated more than 3,000 conversations and preferred the full Thomson system over each of five external systems; the authors call the latter a system demonstration rather than an isolation of the model's contribution, and the systems had different tool and data access [24]. So the evidence on legal reinforcement learning is not all downstream of rubric benchmarks. Among the public studies I reviewed through this draft's date, however, I did not find a matched frontier comparison, before and after a legal RL stage, validated by an independent assessment of professional quality.

The burden should be stated precisely. The paper does not have to show that legal RL contributes nothing, and I do not believe that. It has to show that the measure on which the gains are reported does not, on its own, license the inference to better professional work. The audit shows that. "But the score went up" answers a question the audit did not ask.

4.5 What independent validation would look like

Independent does not mean rubric-free. It means an assessment that does not reproduce the assumptions in dispute: a second rubric benchmark built the same way is weak corroboration, and a second model judge applying the same defective requirement is almost none. What would count: blinded practitioner comparisons on independently prepared matters; source checks of factual assertions against the record; assessment of consequential omissions and of what the lawyer chose

to leave out; matched pairs in which a small change in the facts should change the answer and a superficial change should not; and separately developed, expert-validated criteria for the rule-like requirements. Lawyer preference is not an unquestioned ground truth either. Harvey's own study of 24 LAB tasks, three lawyers each, found only modest agreement on any particular task (Fleiss' κ of 0.129) and found that model judges were "willing to trade-off critical hallucinations or mistakes for other features in ways lawyers found unacceptable" [10], which is a candid statement of the aggregation problem.

Evaluation research points the same way. Rubric rewards work in domains with expert-grounded, instance-specific criteria [21]; routing each criterion to a deterministic verifier where one exists and weighting essential criteria above supplementary ones reduces exploitable false positives [20]; rubrics can evolve during training rather than stay frozen [22]; and in law specifically, reinforcement learning against issue-tree rubrics built from court judgments improved correctness "albeit with reduced coverage," a direct observation of a reward trading one skill for another [19]. The general reason to validate a reward against an evaluator it was not optimized for is the one Gao, Schulman, and Hilton demonstrated: optimization against a proxy eventually diverges from the gold evaluator [23]. Measurement theory names the two failure modes: construct-irrelevant variance, where scores move for reasons unrelated to the ability measured, and construct underrepresentation, where the assessment misses part of it [26]. The defects documented here are the first kind. Table 3 sets the audit's implications against that work.

Implication of the audit	Related evaluation research	Where the audited criteria diverge
Check rule-like requirements against the record and the law with a verifier, not only a judge's reading	[20]; [17]	Criteria that credit nonexistent affidavits, require a date conflict the record lacks, or state Georgia law backwards
Credit defensible alternatives; latitude protects the result, not the mark	[17]	Screening versus consent; appeal-and-remand versus remand; the rounding footnote
Judge the function of a statement, not its presence	[18]; [10]	"States" and "mentions" penalties that fire on rebuttals
Let weight track validity and materiality	[20]	LegalReasonBench attaches 28 and 30 points to defective requirements; LAB's all-pass rule makes every criterion a veto
Validate the reward against an evaluator it was not optimized for	[23]; [26]	Training on LAB-style rubrics and reporting LAB (Section 4.4)

Table 3: Implications of the audit, informed by evaluation research. The middle column points to related work; the implications themselves follow from the exhibits in Section 3.

4.6 What the review process should show

Both projects describe their construction and review only at a high level (Section 2.1). What the audit establishes is that substantive errors survived into the audited releases: a rubric that states Georgia law backwards, a research memo that quotes language not in the cited cases, a criterion that rewards a date conflict the record does not contain. It does not identify which stage introduced them or why review did not remove them. In other domains that question matters less, because automated checks validate the environment; in law the checks are the lawyers. Publishing the

materials made these errors discoverable and makes correction possible. The reasonable demand is a review process whose source checks, disagreements, and corrections can themselves be inspected: who authored and reviewed each task, what sources the reviewers could open, how disagreements were resolved, and how corrections are versioned. The reasonable inference is that producing valid legal rubrics at scale is harder than it looked.

5 Directions

Three directions follow, each stated at the level the evidence supports.

The commission defects are established. Whether the benchmarks also underrepresent the skills that cut across matters is a hypothesis this audit cannot test, and it is worth testing. Several recurrent skills can be stated explicitly: reading text with its exceptions and interacting provisions, reasoning from authority and distinguishing it, respecting procedural posture and burdens, identifying what is missing from a record, and judging what is material. The canons of interpretation are a published taxonomy of one of them, though canons vary in authority and their interaction is contested, so recognizing a canon's name is not the same as applying it in an unfamiliar matter. LegalBench includes interpretation tasks [29]. My impression from reading all 2,858 LAB litigation criteria and all 179 LegalReasonBench criteria is that nearly all specify content to include and few ask whether the model selected, prioritized, or qualified well; micro1's own classification assigns 57% of positive weight to Application and 5% to Issue [13], so "predetermined content" is the right label, not "issue spotting." Turning that impression into a result takes a declared taxonomy and a coverage inventory of both benchmarks.

Published judicial opinions are a vast body of reasoned decisions, each stating facts, competing positions, the court's resolution, and often its reasons for rejecting the losing argument, and in the United States they are public domain as government edicts, *Georgia v. Public.Resource.Org, Inc.*, 590 U.S. 255 (2020), which is not true of the briefs filed alongside them. They are published explanations of decisions, not transcripts of a judge's thinking, and some current work already builds rubrics from them [19]. Law school has used them for a century and a half to teach the transferable skills above, by having students meet a principle in example after example and then test it on new facts; Singer describes the method and the problem-solving cases that start before the facts and issues are settled [28]. That is a design for a learning environment: reading opinions resembles learning from demonstrations, predicting dispositions is supervised learning, and the Socratic variation of facts is a transfer test. Three targets need to stay distinct in any such program: predicting what a court did, reconstructing its stated reasoning, and advising competently on the information available before the decision.

LegalForecastBench, my earlier benchmark, asks models to predict how federal judges ruled on motions to dismiss from the record the judge received [16]. Its contribution here is an externally observable label that no rubric author wrote. Outcome prediction is a sparse signal, and the proposition that learning to predict how courts and lawyers react to a fact pattern will teach general principles of legal reasoning, as predicting the next token taught general principles of language, is a hypothesis I have not tested. The audit supplies a reason for care: in the land-use matter the real county pursued the strategy the rubric requires, and I still coded the criterion defective, because what a lawyer actually did is not the unique correct answer. Denser signals are available in the same records, including issue-level holdings and arguments a court expressly accepted or rejected, with the discipline that silence about an argument is not a negative label. For the evaluation problem itself, the approaches worth investigating map onto the failures observed: source checks for assertions

that can be verified, judging that can tell endorsement from rebuttal, multiple acceptable paths for questions inside the band of discretion, comparison against expert specimens for overall quality, and real-world labels where an outcome exists. Supervised fine-tuning on expert work product and rubrics updated during training are candidates, not demonstrated solutions, and if the training reward moves, the evaluation has to stay held out.

6 Limitations and conclusion

One reviewer, who is also the author, applied the protocol; an independent second lawyer re-deciding some or all of the 50 items would strengthen the result, and I would welcome it. The samples are from AI-flagged frames, so the bounds are lower bounds on those frames and say nothing about criteria the screening missed, and the frames differ between benchmarks. The audited releases are the public litigation sets at pinned revisions, not the private material used for leaderboards or training, and not the other practice areas. The native runs are one execution per model and condition, used as diagnostics. The audit grades criteria and does not correct scores, and nothing in it measures the effect of training against these rewards.

These audits identify substantive failures in the criteria used to evaluate legal work. Consistent application does not cure an incorrect requirement, and improved compliance does not by itself establish improved professional quality. Legal evaluation must also recognize justified restraint: a capable model should be able to identify a fact, an argument, or a possible criticism and decide whether to assert it, qualify it, rebut it, investigate it, or leave it out. The public releases examined here make that question testable. Their next contribution can be to support evaluation that distinguishes those choices accurately.

Reproducibility, access, and AI use disclosure

Code and audit materials are maintained in the LegalForecastBench repository. The sampling protocols, frozen draws, completed worksheets, stress-test records, native model runs with every judge's reasoning, and both citation checks are in the Harvey LAB and LegalReasonBench audit directories. The counts in this paper are generated from the worksheets, and the build fails if a verdict in an appendix entry disagrees with its worksheet.

As I am a practicing attorney and do not have any formal training in artificial intelligence or machine learning, the use of AI models was essential to allow me to make a research contribution in this space that otherwise would have been beyond my capabilities. My personal contribution included reviewing a random sample of the criteria in each benchmark by hand to validate the AI audit findings, deciding every verdict in the appendices, reviewing the sampled citation findings, conducting a deep dive into one of LAB's litigation tasks, and orchestrating AI coding agents that helped write and execute the code that ran the audits and the native benchmark runs. I wrote most of this paper personally, but discussed the results at several points with AI agents and considered AI-generated analysis as an input into my thinking as I drafted. The major exception to this was the AI audit findings, the citation checks, and other places where numerical results are included; I relied on AI agents to produce those findings, to write code that performs the necessary calculations, and to prepare the LaTeX source summarizing those results. I used several different models from Anthropic, OpenAI, SpaceXAI, and Google to check the work, including an adversarial stress test of each of my verdicts. I also met with experienced researchers in the space to validate the experimental design and results, and obtain feedback on the draft, and I am grateful to several AI researchers in

industry positions for helpful discussions. This version of the paper is a working draft, and feedback from researchers, lawyers, and the teams that built these benchmarks on how to improve the audit or make its findings more useful is welcome.

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A Native execution and grading on both benchmarks

To understand how the rubrics evaluated actual AI-generated work product, I ran both benchmarks with GPT-6 Luna (xhigh thinking) and Claude Opus 5.5 (low thinking), using each benchmark's own harness and judges. The examples in Appendices D and E include these outputs, so I could consider how actual model outputs were being graded in evaluating the rubrics. Since the two models ran at different reasoning settings, the difference in their scores is not a controlled comparison of model capability; it was used as a diagnostic. All deliverables, raw judge files, and every criterion's verdicts with the judges' reasoning are published unedited in the audit directories [1, 5].

Harvey LAB

LAB's litigation tasks were run at Harvey commit `1dd81403` with the original instructions, documents, and rubrics. LAB's standard judge pair, Claude Sonnet 4.6 and GPT-5.5, graded every output.

Solver	Effort	Tasks	Criterion pass rate	All-pass cells	All-pass by both judges
GPT-6 Luna	xhigh	52	83.80%	2 of 104 (1.92%)	1 of 52 tasks
Claude Opus 5.5	low	52	90.81%	3 of 104 (2.88%)	1 of 52 tasks

Table 4: Native LAB AI-judge grades on the 52 public litigation tasks. For each task, each judge's fraction of criteria passed is averaged across the two judges and then across tasks with equal weights. An all-pass cell is one judge passing every criterion on one task; there are 104 such cells per solver.

These grades reflect how LAB's judges applied the original rubrics; they are AI judgments and can misapply a criterion. Under LAB's all-pass rule, a run scores 1 with a judge only if every criterion passes, so a single failed criterion on a task zeroes that judge's score for it.

LegalReasonBench

The 11 litigation assignments were run as native multi-step tasks through the upstream harness at dataset revision `1bfa904c`, with assignments within a matter run in order in one persistent sandbox so later assignments could read earlier deliverables. The task-provided verifier graded every criterion with the benchmark's three-judge panel (GPT-5.6 Terra, Claude Sonnet 5, and Gemini 3.8 Flash) by strict majority, and the upstream scorer aggregated signed points. All 22 answers have complete grade panels. The harness recorded a nonzero agent exit diagnostic on 21 of the 22 assignment steps, including EPIPE diagnostics, although every archived agent log ends with a model stop event; the saved responses and complete panels establish the reported grades, but the execution record is not a clean-exit experiment. Matter scores, per-assignment contributions, usage, and reconstructed costs are in the experiment record [5].

	GPT-6 Luna (xhigh)		Claude Opus 5.5 (low)	
Matter	Signed points	Score	Signed points	Score
Land-use certiorari	50/320	15.6%	20/320	6.3%
Police discipline	160/332	48.2%	224/332	67.5%
Jury instructions	25/310	8.1%	60/310	19.4%
Forum non conveniens	2/201	1.0%	107/201	53.2%

Table 5: Native LegalReasonBench matter scores: signed points earned across assignments divided by total positive points, clamped to the unit interval. One execution per model and matter.

The 60.5% penalty discussed in Section 3.4 illustrates the arithmetic. On the second forum non conveniens assignment, with 73 positive points available, Opus earned 33 signed points (45.2%) with the −30 penalty and would have earned 63 (86.3%) without it; Luna earned −14, clamped to zero, and would have earned 16 (21.9%).

B Citation checks of the task environments

Because the rubric audit turned up instances where the rubrics contained hallucinated case law (suggesting that whoever was responsible for verification may have relied on inaccurate AI-generated responses to prepare the answer key), I asked AI agents to conduct a separate citation check of the litigation and dispute resolution tasks to assess the frequency of AI hallucinations in the task environments or rubrics. A citation check is a standard pre-filing procedure where lawyers check every authority cited in a brief, regulatory submission, or other important document to ensure that the authority is cited accurately, contains any quotation attributed to it, and supports the legal proposition for which it is cited.

An initial AI-assisted check of every case citation in the 19 sampled LAB environments against CourtListener, with spot checks, found problems in 45 of 102 citations to purported real authority: 32 real cases cited for holdings, quotations, or facts they do not contain, 7 cases that could not be found, 5 garbled citations to real cases, and 1 citation pointing to a different case [2]. A broader occurrence-based check then covered all 52 tasks. After excluding errors in case law that were intentionally planted and then tested in rubrics (e.g., an error of law in an opponent's submission that the model was supposed to catch), the AI identified 436 errors that were apparently not intended to be part of the task environment [3]:

Finding	All citations	Case citations
Verified	2,754	306
Verified, minor defect (pin cite, loose paraphrase, wrong year)	346	54
Intentional error tested by the rubric (excluded)	31	6
Unintentional errors		
Cited for a proposition it does not support	246	105
Not found (likely fabricated)	76	60
Garbled citation to a real authority	58	10
Quotation not found in the authority	40	31
Reporter citation belongs to a different case	16	12
Total unintentional errors	436	218
Source text not accessible	51	6
Total checked	3,618	590

Table 6: AI citation check of the 52 LAB litigation task environments. This table shows the AI findings; the attorney review below estimates how many are real.

I reviewed a simple random sample of the 436 errors personally. Before I reviewed any sampled finding, I drew 20 citation findings and pre-committed to a stopping rule that if the first ten were all confirmed errors, I would stop; otherwise I'd review 10 more. I reviewed each citation finding and agreed that all ten involved errors a careful lawyer would correct before filing. The AI had correctly classified seven as cited for propositions they do not support and three as real authorities cited by the wrong number or subsection. Three of the ten involved miscitations to the Eleventh Circuit's pattern civil jury instructions. With ten of ten confirmed, a conservative one-sided 95% lower confidence bound is 303 of the 436 flagged errors (69.5%); the calculation accounts for both possible stopping points under the pre-committed rule. I did not attempt to review or identify errors the AI may have missed among citations it marked as verified.

A separate AI citation census covered the LegalReasonBench litigation documents on a different

counting unit: each citation occurrence in a unique matter document, with repeated attachment copies in later assignment packets not counted again. It recorded 2,312 real-authority occurrences: 1,957 verified, 118 with minor defects, 73 problem occurrences (47 mischaracterized, five misquoted, and 21 wrong citations to real cases), and 164 that could not be verified, mostly historical local compilations and agency decisions that no worker could retrieve; seventy references to fictional scenario authorities are excluded, and no citation was labeled fabricated merely because retrieval failed. Every first-stage problem claim received an independent second AI judgment [5]. The observed problem rate is 73 of 2,312 (3.2%). These are AI judgments that I did not sample for attorney review, and because the counting units differ from the LAB check, the two rates should not be read as a contest between the benchmarks.

C A synthetic task environment: the motion-to-dismiss case study

In addition to auditing the accuracy of all 2,858 rubrics, I did a deep dive review of one substantive LAB litigation task. This review highlighted a different but equally important issue: the use of synthetic or AI-generated data may result in task environments that are unrealistic in a variety of subtle ways that may not be obvious to nonexperts but that are striking and clear to practicing attorneys. The task `analyze-counterparty-motion-to-dismiss` asks AI agents to prepare a list of issues for the opposition brief to a motion to dismiss, on a fictitious software service dispute.

I observed several ways in which the synthetically generated task environment seemed unrealistic and could potentially train models on a distorted view of what genuine practice looks like [4].

Planted issues. A number of the legal disputes in the task environment are obviously "planted" in a way that feels artificial and ultimately presents issues in a way that is meaningfully different from how real-world legal disputes manifest. For example, the contract the parties are suing over has a forum selection clause that requires any lawsuit to be filed in Travis County, Texas. The plaintiff literally quotes this entire provision in the complaint but nevertheless files suit in the Northern District of Georgia and offers no explanation for why they believe the forum selection clause they quoted does not apply or otherwise permits the suit in Georgia. It of course happens regularly that a lazy or incompetent litigant files suit in the wrong forum; a competent lawyer potentially could decide to ignore the clause and hope that their adversary overlooks the issue. But in both of those scenarios, the forum selection clause would not be explicitly flagged in the complaint as it is here; a real version of this legal task would require the lawyer to dig through a number of documents and realize that buried in one of them is a forum selection clause that allows the lawyer to have the case moved to Texas.

This is one example, but a significant number of the tasks in these environments were similarly planted in a way that's artificial and unlike how disputes around these issues arise in real cases. Environments like this can distort an evaluation of a model's true capabilities, since simply looking for the obviously planted issues will satisfy the benchmark without testing whether the model would be able to identify this issue from more realistic source material akin to what it will see in real cases.

Environment documents violate court rules. Many of the documents in these environments do not resemble real lawyer work product. The environment provides counterparty litigation documents in docx format, and the native files from the git repository often cannot be opened, although agents and various CLI tools can recover the document text. In real litigation, lawyers rarely share their docx files with their opponent; the opponent's memorandum of law is ordinarily filed with the court as a PDF. The motion papers also lack a proper caption, include a stale table of contents, contain markdown formatting artifacts that render in Word as junk characters even in files that can be opened normally, lack citations for propositions that generally require citations, and are single spaced rather than double spaced in violation of the applicable court rules.

The motion that the agent is being asked to respond to is so far below professional norms that you would want any analysis of the motion to include consideration of whether the judge would strike the motion or require it to be refiled in compliance with the rules. That is not included in the rubric for this task because the quality control issues appear to be unintentional, not part of the test for the agent. But it is a genuine gap: if a document like this were filed in real litigation, the quality of the work product could itself become a substantive issue in the litigation and thus would need to be flagged given the goal motivating the all-pass criterion, which was to ensure that the AI does not

overlook any important issues [8, section "Evaluating a task"].

There are valid reasons to prefer rubric-based reinforcement learning approaches. For example, while a benchmark like LegalForecastBench (which asks models to predict how federal judges ruled on motions to dismiss) can test a model's legal reasoning and analytical ability over a narrow task, it does not test the model's ability to generate new work product, which is an important consideration for a company like Harvey that is developing legal agents to prepare and revise different kinds of legal work product. But reviewing these environments suggests that the current state of the art in synthetic data generation introduces drift on a variety of dimensions that could undermine the efficacy of the task environment as a training or evaluation signal. The model is in effect being tested on its ability to recognize a distinct environment, very unlike what it will encounter in production, and adhere to a stylized set of norms and rules that were artificially constructed in that environment but do not comport with the real norms or rules that govern real-world tasks. While creating LegalForecastBench illustrated that there are real challenges in working with real-world litigation data as well, for a variety of tasks that data has a lot of rich, implicit signal that data providers generating synthetic data are unable to capture.

D Human review of AI-flagged LAB criteria

I asked two frontier models, GPT-6 Sol and Claude Opus 5.5, to audit the 52 tasks in LAB's litigation tasks (specifically Harvey commit `1dd81403`). Table 7 reports how many criteria each pass flagged as defective or arguably defective. The combined row is Opus's later review of rubrics already flagged by either pass. A criterion counts as flagged if Sol flagged it or if Opus's final position after reconciliation flagged it; the 89 blind-pass flags that Opus withdrew on reconciliation, and 7 Sol entries that were not final flags, are not counted. That is 835 of the 2,858 criteria (29.2%) [1].

Pass	What the model saw	Criteria flagged
GPT-6 Sol	The tasks, without Opus's results	616
Claude Opus 5.5, first pass	The tasks, without Sol's results	650
Claude Opus 5.5, combined	The rubrics flagged by either pass	564
Flagged by either model	Share of all 2,858 criteria	835 (29.2%)

Table 7: AI audit of the 52 litigation tasks at Harvey commit `1dd81403`.

In order to validate the AI findings and determine how many of the AI-flagged rubrics were genuinely defective, I reviewed a simple random sample of 25 of the flagged rubrics, drawn with a fixed seed from 19 tasks. I committed the protocol for that review before it began [2]. For each rubric, I reviewed the grading rubric itself, the findings from both AI auditors, how LAB's AI judges graded two real model runs (GPT-6 Luna and Opus 5.5) on that rubric, and the relevant documents from the task environment. In a few cases I also did research into the relevant governing law. I marked a rubric as defective when it could produce an inaccurate grade, meaning: either the rubric could fail a response that a thoughtful litigator would consider appropriate, or the rubric could pass a response that a thoughtful litigator would consider wrong on the issue the rubric is testing. A rubric that forces one of several permissible answers is therefore defective, because it would fail the others.

During the review, I decided to distinguish between defects in the rubrics themselves and defects in the task environment. The line between the two was based on whether the defect could change the grade a model is given on the task. For example, one rubric wanted the work product to contain a specific metric sourced from the task environment, but the AI auditors pointed out that the task environment actually contained two contradictory numbers for that particular metric. Accordingly, an AI agent that relied on one of the numbers (which was not the one the rubric was expecting) would be failed incorrectly because of the underlying defect in the task environment. I treated that as a defect in both the rubric and the task environment. By contrast, a different task environment contained a notice of an OSHA regulatory violation from a state-level regulatory agency in Ohio that does not actually have jurisdiction over the violations charged. The rubric wanted work product to simply flag the existence of the charge in the work product. I coded that as a defect in the task environment but not as a defect in the rubric (because an AI agent handed that task could, and likely still would, pass the rubric by simply mentioning the charged violation).

Of the 25 criteria, I graded 16 rubrics defective in ways that affect grading, including 9 that I considered to be unambiguous objective errors in which the record, the law, the cited authority, or the arithmetic contradicts the rubric. 3 were arguable defects, and 6 were not defective. 14 of the 25 come from task environments that contain defects (10 of the 19 tasks). Only 4 had neither a defective nor an arguable criterion and came from an environment without a defect (Table 8).

Since the sample was a draw without replacement from the 835 criteria that AI agents had flagged as defective, the one-sided 95% lower confidence bounds are: at least 383 flagged criteria are defective in ways that affect grading (point estimate 534; the bound is 13.4% of all criteria in the practice area); at least 171 are unambiguous objective errors (point estimate 301); and at least 319 come from task environments that contain defects (point estimate 468). At least 524 involve a defective criterion, a defective environment, or both (point estimate 668). In the sample, 9 of the 10 criteria flagged by both auditors were defective, against 7 of the 15 flagged by only one.

I did not attempt to estimate defects in criteria that were not flagged by the AI agents; it is possible there could be some additional defects that the agents did not flag. These estimates count criteria/rubrics, not the individual mistakes that give rise to the defects. In some cases, the defect was specific to the particular rubric at issue, but in other cases, a single error in a task environment could make several criteria defective. After I prepared an initial set of verdicts, I asked AI models (GPT-6.1 Sol and Opus 5.5) to stress test my answers and to draft additional arguments both for and against each call and a summary of those they would change. I changed a handful of verdicts after reflecting on these points, and did a second pass through the full set of my verdicts to ensure that they applied the principles I adopted during the review consistently to each call.

The audit of rubrics revealed instances where the task environment, and sometimes grading rubrics, appeared to rely on AI-generated hallucinated case law citations. The citation checks that followed are reported in Appendix B; several entries below cite their per-task results.

Criterion verdict	Environment defective	Environment correct	Total
Defective	10	6	16
Arguable	2	1	3
Not defective	2	4	6
Total	14	11	25

Table 8: My verdicts on the 25 sampled criteria, by whether the task environment itself contains a defect.

The sampled criteria

Each entry has four parts: (1) the criterion quoted verbatim from Harvey's task file (that text is from Harvey's data vendors, not me, and in many cases the text appears to be AI-generated), (2) my verdict on the criterion and task environment, (3) results from a sample run of LAB using GPT-6 Luna and Claude Opus 5.5, to assess how LAB's AI graders (Claude Sonnet 4.6 and GPT-5.5) graded outputs from Luna and Opus on the specific criteria at issue, and (4) my explanation of the verdict. Harvey task files are cited at commit `1dd81403`.

1. Assess Reasonableness of Staffing Levels on Litigation Invoice (C-049)

Quoted from Harvey LAB

> **Calculates budget overage percentage as approximately 17%.** PASS if the memo calculates the percentage by which the attorney fee subtotal ($193,372.50) exceeds the approved budget ceiling ($165,000) as approximately 17% (exact figure is 17.2%). FAIL if no percentage overage calculation is provided or if the percentage stated is materially incorrect (off by more than 2 percentage points).
>
> — Harvey LAB, criterion C-049, task file at commit `1dd81403`

My assessment	
Criterion	Defective — unambiguous objective error, deficiency in task environment
Task environment	Defective: the invoice's 117 time entries add up to $215,680.00, while its summary and subtotal show $193,372.50.
AI auditors' reasoning	Correct
LAB's own grading of two model runs (Harvey's judges, not my assessment)	
GPT-6 Luna	Sonnet 4.6 judge: fail; GPT-5.5 judge: fail
Claude Opus 5.5	Sonnet 4.6 judge: pass; GPT-5.5 judge: pass

My analysis. The rubric is testing the AI on a specific percentage calculation from an invoice, but the document in the environment is internally inconsistent. The invoice's summary page and its subtotal row show fees of $193,372.50 (17.2% over the $165,000 budget), but the 117 detailed time entries add up to $215,680.00, which puts the overage at $50,680, or 30.7% (13.5 points from the rubric's required 17.2% answer and far outside the 2-point tolerance).

2. Categorize Document Production Set by Relevance and Privilege — Privilege Log and Relevance Classification Report (C-012)

Quoted from Harvey LAB

> **ISSUE_003: DOC_012 identified as Partially Privileged.** PASS if DOC_012 (chandrasekaran-meeting-notes-aug28.docx, Chandrasekaran's handwritten meeting notes from August 28, 2023) is classified as Partially Privileged. FAIL if classified as fully Privileged or Not Privileged.
>
> — Harvey LAB, criterion C-012, task file at commit `1dd81403`

My assessment	
Criterion	Defective — low-quality professional judgment, rubric is incorrect
Task environment	Correct
AI auditors' reasoning	Correct
LAB's own grading of two model runs (Harvey's judges, not my assessment)	
GPT-6 Luna	Sonnet 4.6 judge: pass; GPT-5.5 judge: pass
Claude Opus 5.5	Sonnet 4.6 judge: pass; GPT-5.5 judge: pass

My analysis. The rubric is wrong because it fails fully Privileged, which is the better answer here (even if Partially Privileged is defensible).

- The documents are handwritten lawyer notes from a fictitious meeting discussing problems with the R&D Department. The headings on individual topics seem intended to create the impression that there is a discussion of business topics (which would not be privileged) followed by a separate discussion of legal topics (privileged), so from a superficial glance, the rubric does seem to match the topic headings. However, the bullets under each heading make clear that the entire meeting is just dedicated to the topic of the company's desire to find a way to fire the head of R&D without getting sued. The business topics (which look to be nonprivileged) are discussions of how the R&D department is a bit of a disaster, such that management wants to fire the head. The legal sections then involve discussion of the fact that the R&D head has some sort of environmental whistleblower status, so termination is likely to trigger a lawsuit/whistleblower retaliation claim.

- The meeting was specifically convened because outside counsel was concerned about the retaliation claim, and even some of the 'ops' sections that are supposed to be nonprivileged reflect counsel's advice, so they cannot be cleanly treated as nonlegal business discussions.
- While partially privileged might be defensible, my preferred answer would be fully privileged, which the rubric incorrectly fails.

3. Compare Document Production Against Discovery Requests — Discovery Gap Analysis Memorandum (C-029)

Quoted from Harvey LAB

> **ISSUE_011: Notes only 5 documents actually relate to counterclaim damages.** PASS if the memorandum notes that only 5 of the 14 documents coded to RFP 27 (MLC-004056 through MLC-004102) actually relate to Pacific Corridor's volume shortfall and the counterclaim damages calculation, meaning the counterclaim damages support is thin. FAIL if this is not noted.
>
> — Harvey LAB, criterion C-029, task file at commit `1dd81403`

My assessment	
Criterion	Defective — unambiguous objective error, rubric is incorrect
Task environment	Defective: the production index codes 15 rows to RFP 27, but its summary tab gives a count of 14 for a range that contains 13.
AI auditors' reasoning	Correct
LAB's own grading of two model runs (Harvey's judges, not my assessment)	
GPT-6 Luna	Sonnet 4.6 judge: fail; GPT-5.5 judge: pass
Claude Opus 5.5	Sonnet 4.6 judge: fail; GPT-5.5 judge: fail

My analysis. This task requires models to make the point that "only" five documents in the bundle "actually relate to Pacific Corridor's volume shortfall and the counterclaim damages calculation, meaning the counterclaim damages support is thin." This rubric is flawed on multiple levels.

- First, it overlooks MLC-003781, a sixth document that plainly relates to the volume shortfall, so the count is objectively wrong (and the agents pointed to several other examples, at least some of which also seem to fit within the stated criteria). There is a document in the bundle that claims that only five documents concern the volume shortfall, but that assertion is undercut by other evidence supplied in the environment.
- Second, this rubric is someone's argumentative characterization of the documents and probably would not hold up under adversarial testing. For example, there is case law that the term "relate to" is fairly broad and flexible, so quite plausibly a number of other documents would apply.
- Third, the premise underlying this rubric—that "only" five documents is such "thin" evidence that it must be called out—is wrong. Even one document could constitute conclusive proof of damages (the general rule is that damages only need to be reasonably estimated; courts do not require great precision); to my mind, this is actually quite a lot of evidence at the fact stage compared to what one would normally see.

4. Draft Case Assessment Memorandum — Litigation Risk Analysis for Distribution Agreement Dispute (C-025)

Quoted from Harvey LAB

> **ISSUE_007: Recommends motion to dismiss on unjust enrichment.** PASS if the memo recommends filing a motion to dismiss (or motion for judgment on the pleadings, or similar dispositive motion) targeting the unjust enrichment claim (Count IV) on the ground that an express contract governs the parties' relationship. FAIL if no such motion recommendation is made regarding the unjust enrichment claim.
>
> — Harvey LAB, criterion C-025, task file at commit `1dd81403`

My assessment	
Criterion	Defective — low-quality professional judgment, rubric is incorrect
Task environment	Correct
AI auditors' reasoning	Correct
LAB's own grading of two model runs (Harvey's judges, not my assessment)	
GPT-6 Luna	Sonnet 4.6 judge: fail; GPT-5.5 judge: fail
Claude Opus 5.5	Sonnet 4.6 judge: pass; GPT-5.5 judge: pass

My analysis. A different rubric on this task concludes that plaintiff has a strong breach of contract claim. (See id: C-006.) The prompt instructs models to review case documents and "prepare a comprehensive case assessment memo," and models are dinged on this rubric if they do not "recommend[] filing a motion to dismiss" on the unjust enrichment claim, which is expressly pled in the alternative to the (strong) breach of contract claim.

- The rubric is wrong because a careful litigator could reasonably conclude that a motion to dismiss that claim is not a good idea: Count IV is pleaded in the alternative (Complaint ¶127) and seeks restitution of "no less than $22,521,312.50" (¶135), which is exactly the Count I contract damages ($17,721,312.50, ¶94) plus the Count III trade-secret damages ($4,800,000, ¶120). Counts I and III would survive the motion and double recovery is barred, so dismissing Count IV would not reduce the defendant's net exposure; and the factual underpinnings of both claims are the same so a successful motion would not reduce the scope of discovery. Filing a dispositive motion is costly and, on these facts, there seems to be no benefit to doing so. So the required recommendation would fail many thoughtful analyses that could discuss the pros and cons and recommend against filing such a motion.

5. Draft Conflict Check Memorandum for Litigation Engagement Clearance (C-030)

Quoted from Harvey LAB

> **ISSUE_005: Recommends screening or removal of Caleb Strand.** PASS if the memo recommends that Caleb Strand be screened from the engagement or removed from the proposed staffing. FAIL if no such recommendation is made.
>
> — Harvey LAB, criterion C-030, task file at commit `1dd81403`

My assessment	
Criterion	Defective — low-quality professional judgment, rubric is incorrect
Task environment	Correct
AI auditors' reasoning	Correct
LAB's own grading of two model runs (Harvey's judges, not my assessment)	
GPT-6 Luna	Sonnet 4.6 judge: pass; GPT-5.5 judge: pass
Claude Opus 5.5	Sonnet 4.6 judge: pass; GPT-5.5 judge: pass

My analysis. The rubric requires the model to recommend that an associate who shares an apartment with his sister (an in-house IP paralegal at TriPoint, the adverse party) be screened from the matter. Screening is generally used in certain specific situations where required by the professional conduct rules, but no rule requires screening in this scenario.

- I agree that a prudent memo would flag the fact that a junior team member is sharing an apartment with an employee of the adverse party, but that is covered by other rubrics (C-026 through C-029). This rubric specifically fails the work product (and results in a 0 for all work on this task) even if the model recommended, say, obtaining the client's informed consent, which would be perfectly permissible and appropriate here.
- Other rubrics in this task resolve similar kinds of conflicts with informed consent (C-024 accepts "clearance with conditions (such as obtaining informed consent)" for Lisa Chow's spousal conflict, and C-016 recommends informed consent for the Ridgeline conflict). Accordingly, informed consent plus a home confidentiality protocol could suffice as an alternative to screening.

6. Draft Conflict Check Memorandum for Litigation Engagement Clearance (C-049)

Quoted from Harvey LAB

> **ISSUE_011: Recommends integrating annual disclosure questionnaires with ConflictTracker.** PASS if the memo recommends that annual conflict-disclosure questionnaires be cross-referenced with or integrated into the ConflictTracker system. FAIL if no recommendation about integrating disclosure questionnaires with the conflicts database is made.
>
> — Harvey LAB, criterion C-049, task file at commit `1dd81403`

My assessment	
Criterion	Defective — requires specific outputs not expressly or impliedly requested in the prompt
Task environment	Correct
AI auditors' reasoning	Correct
LAB's own grading of two model runs (Harvey's judges, not my assessment)	
GPT-6 Luna	Sonnet 4.6 judge: fail; GPT-5.5 judge: pass
Claude Opus 5.5	Sonnet 4.6 judge: pass; GPT-5.5 judge: pass

My analysis. The assignment in the prompt is to draft a "comprehensive conflict check memorandum for the proposed engagement." The rubric requires that the memo contain suggested firm-wide process improvements (memo must "recommend[] that annual conflict-disclosure questionnaires be cross-referenced with or integrated into the ConflictTracker system"). That's simply not the

assignment, and there are many reasons why it's undesirable to jam broad process suggestions into a conflicts memo for one specific case. This rubric actually failed work product from Luna that did everything a clearance memo needs on this point. The two judges split on that same Luna memo (Sonnet 4.6 failed it; GPT-5.5 passed it), which shows the criterion does not grade reliably.

7. Draft Counterclaim Against Plaintiff for Breach of Joint Development Agreement (C-045)

Quoted from Harvey LAB

> **Count: Patent Infringement (ISSUE_005).** PASS if the counterclaim includes a separate count for patent infringement under 35 U.S.C. § 271, alleging that the LumiSense 400 infringes U.S. Patent No. 11,234,567 covering the SensorCore™ architecture. FAIL if no patent infringement counterclaim is asserted.
>
> — Harvey LAB, criterion C-045, task file at commit `1dd81403`

My assessment	
Criterion	Arguable
Task environment	Defective: the record lacks the patent the counterclaim must plead, and the two expert reports give different titles for it.
AI auditors' reasoning	Correct
LAB's own grading of two model runs (Harvey's judges, not my assessment)	
GPT-6 Luna	Sonnet 4.6 judge: pass; GPT-5.5 judge: pass
Claude Opus 5.5	Sonnet 4.6 judge: pass; GPT-5.5 judge: pass

My analysis. The task is to draft a counterclaim based on a handful of documents (including an expert report, some emails, and a counterclaim strategy memo that another lawyer prepared). The rubric dings the AI if the counterclaims do not include "a separate count for patent infringement under 35 U.S.C. § 271, alleging that the LumiSense 400 infringes U.S. Patent No. 11,234,567."

- The environment does not contain the allegedly infringed patent, which one would need to review in order to have a sufficient basis for drafting that counterclaim, so this environment appears to be incomplete. That said, a defensible approach might be for the agent to draft the counterclaim but flag in brackets that it requires verification.

8. Draft Counterclaim Against Plaintiff for Breach of Joint Development Agreement (C-046)

Quoted from Harvey LAB

> **Patent Infringement Count: Patent Number Cited.** PASS if the patent infringement count specifically identifies U.S. Patent No. 11,234,567. FAIL if the patent number is omitted or incorrect in the patent infringement count.
>
> — Harvey LAB, criterion C-046, task file at commit `1dd81403`

My assessment	
Criterion	Arguable
Task environment	Defective: same task environment as item 7.
AI auditors' reasoning	Partly correct
LAB's own grading of two model runs (Harvey's judges, not my assessment)	
GPT-6 Luna	Sonnet 4.6 judge: pass; GPT-5.5 judge: pass
Claude Opus 5.5	Sonnet 4.6 judge: pass; GPT-5.5 judge: pass

My analysis. Same issue as prior rubric. This one is essentially derivative because it depends on pleading the patent count that was required in the prior rubric.

9. Draft Case Assessment Memorandum for Defective Industrial Equipment Product Liability Claim (C-003)

Quoted from Harvey LAB

> **Executive Summary mentions death of Marco Reyes.** PASS if the Executive Summary mentions the death of Marco Reyes. FAIL if the fatality is not mentioned in the Executive Summary.
>
> — Harvey LAB, criterion C-003, task file at commit `1dd81403`

My assessment	
Criterion	Defective — requires specific outputs not expressly or impliedly requested in the prompt
Task environment	Defective: same task environment as item 10 (Ohio state agency issuing OSHA citations).
AI auditors' reasoning	Correct
LAB's own grading of two model runs (Harvey's judges, not my assessment)	
GPT-6 Luna	Sonnet 4.6 judge: pass; GPT-5.5 judge: fail
Claude Opus 5.5	Sonnet 4.6 judge: fail; GPT-5.5 judge: fail

My analysis. The case involved a (fictitious) safety incident at a manufacturing plant that killed one employee and seriously injured two others. The rubric requires the fact that one employee died be discussed specifically in the "executive summary." When we tested Opus 5.5 and GPT-6 Luna on this benchmark, both discussed the death in several places in their memo, especially the factual background section, but the executive summary consisted of an overview of the legal analysis that did not restate the fact of the death. They were failed by one or more judges.

- This fails perfectly competent and appropriate work product. The company CEO who retained counsel to advise on this incident is the same person who delivered news of the (fictitious) tragic death to the decedent's widow and surviving family members, so the most senior management of the company is obviously very familiar with the incident and the agents' approach of focusing the executive summary on the legal exposure is appropriate.
- The two judges reached opposite results on Luna's memo: GPT-5.5 failed it, while Sonnet 4.6 passed it only by quoting a sentence from the memo's facts section as if it appeared in the executive summary.

10. Draft Case Assessment Memorandum for Defective Industrial Equipment Product Liability Claim (C-026)

Quoted from Harvey LAB

> **OSHA LOTO citation identified with specific violation and penalty.** PASS if the memo identifies the OSHA serious citation for LOTO deficiency under 29 CFR 1910.147(c)(4)(i) with a penalty of $18,900. FAIL if this specific citation, regulation, or penalty amount is not referenced.
>
> — Harvey LAB, criterion C-026, task file at commit `1dd81403`

My assessment	
Criterion	Not defective — defective environment, but rubric does not fail correct work product
Task environment	Defective: Ohio's Division of Safety & Hygiene cannot issue OSHA citations to this private employer. The criterion itself does not misgrade work (environment-only defect).
AI auditors' reasoning	Wrong
LAB's own grading of two model runs (Harvey's judges, not my assessment)	
GPT-6 Luna	Sonnet 4.6 judge: fail; GPT-5.5 judge: fail
Claude Opus 5.5	Sonnet 4.6 judge: pass; GPT-5.5 judge: pass

My analysis. Although the specific rubric being tested does not fail work product incorrectly, the environment is defective in an unintended way. The environment contains an OSHA citation from Ohio's Division of Safety & Hygiene. But Ohio does not have an OSHA-approved State Plan, so only federal regulators have jurisdiction to issue OSHA citations against this company. The environment does not test that so it is not being presented as a "mistake" by one's adversary that the agents should pick up on.

- The rubric itself is not wrong because it simply wants a memo to address the purported citation, so an agent could write the memo while noticing that the task is obviously a fictitious evaluation with an incoherent environment.

11. Draft Discovery Plan Memorandum for Breach of Contract and Fraud Defense (C-036)

Quoted from Harvey LAB

> **Provides custodian priority rankings.** PASS if the memo provides priority rankings or tiers for custodians (e.g., high/medium/low priority, or Tier 1/Tier 2, or similar prioritization). FAIL if custodians are listed without any indication of relative priority.
>
> — Harvey LAB, criterion C-036, task file at commit `1dd81403`

My assessment	
Criterion	Not defective
Task environment	Correct
AI auditors' reasoning	Wrong
LAB's own grading of two model runs (Harvey's judges, not my assessment)	
GPT-6 Luna	Sonnet 4.6 judge: pass; GPT-5.5 judge: pass
Claude Opus 5.5	Sonnet 4.6 judge: pass; GPT-5.5 judge: pass

My analysis. The AI agent is right that the rubric is really enforcing a stylistic choice, but the choice here is well-grounded in convention and an appropriate expectation for quality work product. The case file contains a court order where the judge encouraged the parties to discuss whether phased discovery would be appropriate at the Rule 26(f) conference, and there is some existing prioritization work in the environment. The rubric requires that the agent's discovery plan include some kind of prioritization or phasing of custodians, which is a common expectation in these cases. I think it's fair to judge anything that lacks any form of prioritization as deficient given the context.

12. Draft Federal Complaint for Breach of Contract and Fiduciary Duty — Placement Agent Dispute (C-025)

Quoted from Harvey LAB

> **ISSUE_012: Complaint requests injunctive relief.** PASS if the prayer for relief includes a request for preliminary and/or permanent injunctive relief — specifically to enforce the non-solicitation provision and prevent Graydon from continuing to divert Fund III investor prospects to competing funds. FAIL if no injunctive relief is requested.
>
> — Harvey LAB, criterion C-025, task file at commit `1dd81403`

My assessment	
Criterion	Not defective
Task environment	Correct
AI auditors' reasoning	Wrong

LAB's own grading of two model runs (Harvey's judges, not my assessment)	
GPT-6 Luna	Sonnet 4.6 judge: pass; GPT-5.5 judge: pass
Claude Opus 5.5	Sonnet 4.6 judge: pass; GPT-5.5 judge: pass

My analysis. The client intake memo specifically describes an interest in seeking injunctive relief ("We may also wish to seek preliminary and permanent injunctive relief to enforce the twelve-month non-solicitation tail"), and the client's demand letter threatens it. While it's true that the intake memo flags the topic for discussion, the correct approach is to include the proposed prayer for relief in the draft, so the case team can see how it reads and discuss any downsides. As a practical matter, there's unlikely to be much downside to including this prayer for relief in the complaint. (Whether it's worth the cost of actually pursuing a preliminary injunction on this is debatable, so the rubric's approach makes sense.)

13. Draft First Set of Interrogatories to Defendant Veridian Health Systems in Trade Secret Misappropriation Case (C-008)

Quoted from Harvey LAB

> **Definitions section defines 'Document' or 'Documents'.** PASS if the Definitions section includes a definition of 'Document' or 'Documents' that is broad enough to encompass electronically stored information (ESI), emails, and physical documents. FAIL if there is no definition of 'Document' or it is so narrow as to exclude electronic records.
>
> — Harvey LAB, criterion C-008, task file at commit `1dd81403`

My assessment	
Criterion	Defective — unambiguous objective error, rubric is incorrect
Task environment	Defective: the supplied documents mischaracterize or miscite case law (citation sweep; peripheral to this criterion).
AI auditors' reasoning	Partly correct
LAB's own grading of two model runs (Harvey's judges, not my assessment)	
GPT-6 Luna	Sonnet 4.6 judge: fail; GPT-5.5 judge: fail
Claude Opus 5.5	Sonnet 4.6 judge: pass; GPT-5.5 judge: pass

My analysis. The rubric fails any draft that does not supply a definition of "document" encompassing electronically stored information (ESI). There are two problems:

- First, these are interrogatories, not document requests. Well-drafted interrogatories do not necessarily need to use the word "document." The rubric does not really make sense as a requirement for this kind of work product.
- Second, even if we were dealing with document requests here (which we are not), the local rules of many courts, including the Western District of Texas (where this fictitious case is being litigated), define the term "document" for all discovery requests served by litigants in those cases. There is thus no requirement to define the term "documents," and in fact, supplying a definition could just trigger objections from the other side that the local rule controls. See Local Rule CV-26, available at https://www.txwd.uscourts.gov/court-information/lcr-civil-rules/ ("The term 'document' means any document or electronically stored information as described in Federal Rule of Civil Procedure 34(a). A draft of a nonidentical copy is a separate document within the meaning of this term.").
- The rubric does demonstrably fail rules-compliant work product. For example, Luna was failed for not including a definition of the term "Document" but that's actually what the local rules encourage in this Court.

14. Draft First Set of Interrogatories to Defendant Veridian Health Systems in Trade Secret Misappropriation Case (C-026)

Quoted from Harvey LAB

> **Interrogatory re: USB drive or CMT files on Veridian systems.** PASS if at least one interrogatory asks whether Oshiro's USB drive (referencing serial number CX-8827491 or otherwise describing the external storage device) was ever connected to, accessed from, or present on any Veridian system, device, or network, or asks whether any CMT files or materials were ever possessed, accessed, viewed, or copied by Veridian or its employees. FAIL if no interrogatory addresses the USB drive or CMT files on Veridian systems.
>
> — Harvey LAB, criterion C-026, task file at commit `1dd81403`

My assessment	
Criterion	Not defective
Task environment	Defective: same task environment as item 13 (environment-only defect).
AI auditors' reasoning	Wrong
LAB's own grading of two model runs (Harvey's judges, not my assessment)	
GPT-6 Luna	Sonnet 4.6 judge: pass; GPT-5.5 judge: pass
Claude Opus 5.5	Sonnet 4.6 judge: pass; GPT-5.5 judge: pass

My analysis. This one does not really belong on the list, as GPT-6 Sol was complaining about a different rubric (C-048) which it argues is inconsistent with this one. It does not identify any issue in this rubric, standing alone, so this counts as an instance where Sol added something to the "flagged" list that does not belong.

15. Draft Discovery Responses and Objections to RFAs and RFPs in Breach of Supply Agreement Litigation (C-028)

Quoted from Harvey LAB

> **ISSUE_011: Identifies RFA No. 20 as calling for a legal conclusion.** PASS if the plan identifies that RFA No. 20 (asking Prismavale to admit the products were 'not merchantable as defined by the Uniform Commercial Code') calls for a legal conclusion regarding UCC § 2-314 merchantability and recommends objecting on that basis. FAIL if the plan does not identify the legal conclusion problem with RFA No. 20.
>
> — Harvey LAB, criterion C-028, task file at commit `1dd81403`

My assessment	
Criterion	Defective — low-quality professional judgment, rubric is incorrect
Task environment	Defective: the supplied Answer cites complaint paragraph ranges that do not match the complaint (e.g. Count III as ¶¶ 88–94; the complaint's Count III is ¶¶ 86–96).
AI auditors' reasoning	Correct
LAB's own grading of two model runs (Harvey's judges, not my assessment)	
GPT-6 Luna	Sonnet 4.6 judge: fail; GPT-5.5 judge: fail
Claude Opus 5.5	Sonnet 4.6 judge: pass; GPT-5.5 judge: pass

My analysis. Plaintiff served a request for admission on the defendant that says, "Admit that the SB-102 and PS-302 products shipped by Prismavale to Greenleaf were not merchantable as defined by the Uniform Commercial Code." The prompt asks the agent to "prepare a discovery strategy memo and formal RFA/RFP responses." The rubric requires "the plan" (i.e., the strategy memo) to recommend objecting to the request on the grounds that it calls for a legal conclusion. The rubric is wrong for two main reasons:

- First, the modern view is that requests for admission can call for application of law to facts. While it is within acceptable professional norms for a lawyer to object on the ground that such a request calls for a legal conclusion, and then proceed to answer, the better reading of the law is that this request is not objectionable such that the party should simply answer. On this legal conclusion in particular, there's really no reason why one would prefer to object rather than simply deny the requested admission. So this rubric fails competent work product

(and probably the better answer than the one the rubric calls for).

- Second, even assuming one should include the objection at all, the task fails the model if the issue is not expressly addressed in the strategy memo. Luna made the "legal conclusion" objection in the draft responses and then proceeded to a substantive denial (an acceptable approach), but did not discuss the "legal conclusion" objection in the memo. That was judged a failure. That's really requiring duplicative responses on a very minor point that probably shouldn't be in the drafts at all.

16. Draft Motion in Limine to Exclude Expert Testimony and Prejudicial Evidence in Commercial Breach of Contract Case (C-009)

Quoted from Harvey LAB

> **ISSUE_004: Identifies the $11,000 arithmetic discrepancy.** PASS if the motion identifies that the sum of Marchetti's five itemized damages categories totals $14,211,000, but her report states total damages as $14,200,000, creating an $11,000 discrepancy. FAIL if this arithmetic error is not identified.
>
> — Harvey LAB, criterion C-009, task file at commit `1dd81403`

My assessment	
Criterion	Defective — low-quality professional judgment, rubric is incorrect (a judgment call, not an objective error); defective environment (directs advocacy outside professional norms); companion rubric C-010 also incorrect (not sampled)
Task environment	Defective: the task directs advocacy outside professional norms (an $11,000 rounding point offered as a *Daubert* ground) and labels a rounding difference an "arithmetic error."
AI auditors' reasoning	Correct
LAB's own grading of two model runs (Harvey's judges, not my assessment)	
GPT-6 Luna	Sonnet 4.6 judge: pass; GPT-5.5 judge: pass
Claude Opus 5.5	Sonnet 4.6 judge: pass; GPT-5.5 judge: pass

My analysis. The damages expert includes a summary table in her report listing various items of damages, which collectively add up to $14,211,000; the Total Damages line lists the total as $14,200,000. Opposing counsel questioned the expert about it at her deposition, and the expert calls it "a rounding discrepancy." An internal strategy memo highlights the issue as a ground for seeking to exclude the expert's testimony under *Daubert*, arguing "the arithmetic error supports a cumulative argument that the report was prepared without the rigor required of expert testimony in federal court."

- This task is poorly specified, and the recommended strategy of raising this with the judge is a poor one:
- First, the task environment repeatedly calls this an "arithmetic error." At her deposition the expert said it appeared to be "a rounding discrepancy" and that she would need her workpapers to confirm, and the table reads that way: the total is rounded to the nearest $100,000. That is somewhat unorthodox in an expert report (particularly since it is written out as $14,200,000 rather than $14.2 million), but numbers are often rounded in court filings, and a judge is unlikely to treat a rounded total as an error in the analysis.

- Second, even if the gap were an error rather than rounding, an $11,000 discrepancy in a $14.2 million calculation is generally not a basis for excluding the expert's testimony under *Daubert*. At most one could move to exclude the erroneous version and ask for more accurate testimony, but that does nothing to help the hypothetical client here; it just raises their damages exposure by the $11,000 that the expert was willing to round off.
- Third, the proposed framing comes close to a breach of decorum and carries a real risk of drawing a rebuke from the judge. The strategy memo wants the motion to argue the expert's 30 prior engagements were "in state courts and arbitrations that do not impose the same methodological gatekeeping requirements" as federal courts. While some state courts use the *Frye* standard instead of *Daubert*, many federal judges would take offense at an argument that state courts do not observe adequate methodological rigor. And the reality is that many busy judges would be annoyed at spending time on an argument that literally amounts to a rounding error. It's so trivial that raising it as a substantive point risks making the judge think you had no better argument to put forward, so your motion must be weak.
- This rubric is scored as Defective, as a professional-judgment call rather than an objective error. My view is that the better approach is to drop this issue entirely, and the sampled rubric (C-009) fails a motion that does so, even though a motion that merely mentions the discrepancy in a footnote would pass. The companion rubric, C-010, is in my view objectively wrong because it requires that this issue be presented as a basis for excluding the expert's testimony under *Daubert*. Luna was failed incorrectly on C-010 (by the Sonnet 4.6 judge) for downplaying this issue; in fact, Luna was right to do so, as it should not be raised at all. But since that's not the sampled criterion, we do not mark it here.

17. Draft Rule 12(b)(6) Motion to Dismiss Brief — Commercial Software Licensing Dispute (C-037)

Quoted from Harvey LAB

> **ISSUE_008 — Cites Delaware parol evidence authority.** PASS if the motion brief cites relevant Delaware authority on the parol evidence rule and integration clauses, such as SIGA Technologies v. PharmAthene or Eagle Industries v. DeVilbiss Health Care. FAIL if no Delaware parol evidence authority is cited.
>
> — Harvey LAB, criterion C-037, task file at commit `1dd81403`

My assessment	
Criterion	Defective — unambiguous objective error (including hallucinations), rubric is incorrect
Task environment	Defective: the supplied research memo cites fabricated or mischaracterized authority (citation sweep: 28 of 53 citations in this task have problems).
AI auditors' reasoning	Correct
LAB's own grading of two model runs (Harvey's judges, not my assessment)	
GPT-6 Luna	Sonnet 4.6 judge: fail; GPT-5.5 judge: fail
Claude Opus 5.5	Sonnet 4.6 judge: fail; GPT-5.5 judge: fail

My analysis. The rubric here involves a legal error, and the task environment contains hallucinations about case law. This one is extremely defective for multiple reasons:

- First, the rubric is demanding case law on the wrong legal doctrine. Under Delaware law, the parol evidence rule and an integration clause do not preclude fraud claims. The issue here is whether the plaintiff can reasonably allege that they relied on their counterparty's pre-signing representations despite their agreement in the contract that they were not relying on any representations other than those written in the contract itself.
- Second, the cases in the environment appear to contain multiple hallucinations. The rubric refers to SIGA v. PharmAthene, but Opus noted that case does not address integration or parol evidence. The task environment contains a legal research memo that cites *SIGA Technologies, Inc. v. PharmAthene, Inc.*, 67 A.3d 330 (Del. 2013), and claims that it states (at page 344), "an integration clause is the clearest declaration that the parties intend the writing to be the complete and final expression of their agreement." The quoted language does not appear in the cited case. Page 344 of that case addresses the duty to negotiate in good faith, not integration clauses. Similarly, the memo cites *Eagle Industries, Inc. v. DeVilbiss Health Care, Inc.*, 702 A.2d 1228 (Del. 1997) and says: "The Delaware Supreme Court held that 'a party to a contract cannot promise, in a clear integration clause of a negotiated agreement, that it is not relying on promises or representations made by the other party outside of the agreement, and then assert a claim for fraud based on those very representations.' *Id.* at 1232." The quoted language does not appear in the cited case.
- Third, the rubric failed responses that stated the correct law on this point. In our tests, Opus reviewed SIGA and Eagle, correctly realized they were inapposite and declined to cite them, cited more on-point and accurate authority, and was then failed for doing a better job than the rubric's author did at this task.

18. Draft Rule 12(b)(6) Motion to Dismiss Brief — Commercial Software Licensing Dispute (C-045)

Quoted from Harvey LAB

> **ISSUE_010 — References Arcadia's own delays contributing to Go-Live delay.** PASS if the motion brief identifies Arcadia's own contributing failures, including the 45-day Project Manager gap (Kevin Liu's departure) and/or the 75-day late API specifications, as causes of the Go-Live delay. FAIL if Arcadia's own contributory delays are not mentioned.
>
> — Harvey LAB, criterion C-045, task file at commit `1dd81403`

My assessment	
Criterion	Defective — unambiguous objective error, rubric is incorrect
Task environment	Defective: same task environment as item 17.
AI auditors' reasoning	Correct
LAB's own grading of two model runs (Harvey's judges, not my assessment)	
GPT-6 Luna	Sonnet 4.6 judge: fail; GPT-5.5 judge: fail
Claude Opus 5.5	Sonnet 4.6 judge: fail; GPT-5.5 judge: fail

My analysis. The rubric makes a rookie mistake, demanding that the agent argue a factual dispute on a motion to dismiss, where the court is required to assume the plaintiff's allegations are true and cannot consider factual dispute. The 45-day and 75-day delays complained of come from the defendant's internal report, which the plaintiff's complaint disputes. Moreover, courts generally cannot resolve messy fact disputes over "causation" on a motion to dismiss.

- The criterion failed agents that correctly recognized that this argument was outside the scope of what can be argued on a motion to dismiss and thus decided to exclude it.

19. Draft Verified Responses and Objections to Plaintiff's First Set of Interrogatories in Commercial Breach of Contract and Fraud Action (C-028)

Quoted from Harvey LAB

> **Correct financial figures for Tri-Basin purchase history.** PASS if any purchase history figures cited in the responses are consistent with the canonical data: 2015: $9.2M; 2016: $10.1M; 2017: $10.8M; 2018: $12.4M; 2019: $13.6M; 2020: $9.7M; 2021: $15.3M; 2022: $16.8M; 2023 (Jan–Aug): $11.9M. Minor rounding differences are acceptable. Also PASS if the response invokes Rule 33(d) rather than citing specific figures. FAIL if specific purchase figures are cited but are materially incorrect.
>
> — Harvey LAB, criterion C-028, task file at commit `1dd81403`

My assessment	
Criterion	Defective — unambiguous objective error, deficiency in task environment; rubric is incorrect
Task environment	Defective: the purchase-history spreadsheet is internally inconsistent (three 2020 series; line items that do not sum to subtotals), and the record has no contract-year data.
AI auditors' reasoning	Partly correct
LAB's own grading of two model runs (Harvey's judges, not my assessment)	
GPT-6 Luna	Sonnet 4.6 judge: pass; GPT-5.5 judge: pass
Claude Opus 5.5	Sonnet 4.6 judge: pass; GPT-5.5 judge: pass

My analysis. There are two issues:

- First, Interrogatory No. 4(b) asks for Tri-Basin's actual purchases for the 2020 contract year (the contract year runs from January 15 through January 14 of the following year; Interrogatory No. 14 separately asks for calendar-year totals), but the canonical data referred to in the rubric is calendar year data, so the rubric's numbers are not correct for that request. The correct value cannot be discerned from the environment: the monthly data cannot be split at January 15, and nothing in the record supports assuming purchases are spread evenly within January (seasonal variation would make that unlikely). The rubric therefore grades wrong in the opposite direction from most of the other items: rather than failing good work product, it passes responses that supply the calendar-year figure for a contract-year request without acknowledging that the record does not contain the requested data. That is approving fundamentally deficient work product.
- Second, the data that is provided has some internal inconsistencies. For example, an "annual summary" tab lists 2020 purchases at $9.7 million, but the monthly detail lists 2020 three times, with totals of $8,700,000, $8,549,400 and $9,700,000. The units sold do not match up between those two sheets for 2021, 2022, 2023, and series 3 of 2020. One of the monthly rows does not add up (gross $1,210,000 + credits −$17,400 = $1,192,600, but the net shown is $1,192,500). The annual summary minimums do not add up. In the Product Line Breakdown, line-item net revenue never sums to the subtotal. So a response that relied on the line items would get graded as a failure.

- The environment contains law firm discovery guidelines that recommend that interrogatory responses match the client's Answer, but the Answer here contains only approximate figures, which is consistent with the Answer using calendar year data as a rough approximation instead of providing the contract year data requested.

20. Extract Key Obligations from Litigation Hold and Document Preservation Notice — Obligation Summary Memorandum (C-002)

Quoted from Harvey LAB

> **ISSUE_001: Flags financial records date discrepancy as requiring DOJ clarification.** PASS if the memo recommends seeking clarification from the DOJ regarding the conflicting date ranges (Jan 1, 2017 vs. Jan 1, 2019) for financial records. FAIL if no recommendation to seek clarification is made.
>
> — Harvey LAB, criterion C-002, task file at commit `1dd81403`

My assessment	
Criterion	Defective — unambiguous objective error, rubric is incorrect
Task environment	Correct
AI auditors' reasoning	Correct

LAB's own grading of two model runs (Harvey's judges, not my assessment)	
GPT-6 Luna	Sonnet 4.6 judge: fail; GPT-5.5 judge: fail
Claude Opus 5.5	Sonnet 4.6 judge: pass; GPT-5.5 judge: fail

My analysis. The task involves a document preservation notice from federal criminal authorities that defines the relevant period (for which the recipient must preserve documents) as January 1, 2019, through March 3, 2025 "unless otherwise specified herein." For one specific category of documents, the notice states that, "Notwithstanding the Relevant Period defined in Paragraph 12 of this Notice, Ridgeline shall preserve [certain kinds of] records . . . from January 1, 2017 to the present date."

- The rubric suggests that the agent should seek clarification of the "conflicting" date ranges but there is no conflict. The notice quite clearly imposed a longer period for one specific category of documents, while all the other categories are subject to a shorter period. This is a fairly common request.
- Both models were failed on this criterion (Luna by both judges, Opus by one), but the criterion makes no sense.

21. Identify Excessive or Duplicative Research Charges in Litigation Invoice (C-013)

Quoted from Harvey LAB

> **Issue 3: Identifies duplicative MTCA research across Takahashi and Wendt.** PASS if the memo identifies that multiple attorneys (Kenji Takahashi and Tyler Wendt) billed for overlapping MTCA liability/contractor liability/summary judgment research during July 2024, citing Section 6.4 (Duplicative Research Prohibition). FAIL if the MTCA duplication across timekeepers is not identified.
>
> — Harvey LAB, criterion C-013, task file at commit `1dd81403`

My assessment	
Criterion	Not defective
Task environment	Correct
AI auditors' reasoning	Wrong
LAB's own grading of two model runs (Harvey's judges, not my assessment)	
GPT-6 Luna	Sonnet 4.6 judge: pass; GPT-5.5 judge: pass
Claude Opus 5.5	Sonnet 4.6 judge: pass; GPT-5.5 judge: pass

My analysis. While Sol is right that the facts here are insufficient to establish that the client's billing guidelines were violated, for purposes of the task (a client-side memo identifying charges to dispute), it seems reasonable to flag that multiple attorneys were doing research into closely related issues. The task requested "a memo identifying all non-compliant or excessive charges with recommended adjustments," so flagging potential violations (even if they were not clearly proven from the face of the time entries) is a standard approach a client would take here.

22. Identify Issues in Litigation Matter Budget Proposal (C-029)

Quoted from Harvey LAB

> **Budget inconsistency rated as Critical or High severity.** PASS if the fee total reconciliation discrepancy ($116,050 difference between phase-based and staffing-model totals) is assigned a severity of Critical or High (or the highest or second-highest tier in whatever severity scale is used). FAIL if it is assigned a lower severity level or no severity level.
>
> — Harvey LAB, criterion C-029, task file at commit `1dd81403`

My assessment	
Criterion	Arguable — requires specific outputs not expressly or impliedly requested in the prompt
Task environment	Correct
AI auditors' reasoning	Correct
LAB's own grading of two model runs (Harvey's judges, not my assessment)	
GPT-6 Luna	Sonnet 4.6 judge: pass; GPT-5.5 judge: pass
Claude Opus 5.5	Sonnet 4.6 judge: pass; GPT-5.5 judge: pass

My analysis. The prompt requested "a categorized issue memorandum" but didn't specify what the categories should be. The rubric fails the model if it does not break issues into severity levels or it does not assign a critical or high severity level to a specific issue. While it appears that models often do volunteer this kind of severity assessment, it's not requested by the prompt and competent work product could decline to include it.

23. Review Counterparty's Proposed Jury Instructions — Issue Memorandum for Trade Secrets Trial (C-020)

Quoted from Harvey LAB

> **Explains distinction between tortious interference with contract vs. business relations.** PASS if the memo explains that under Georgia law, tortious interference with an existing contract does not require a separately/independently wrongful act — the

knowing inducement of the breach is sufficient — and that the 'independently wrongful act' element applies to the distinct tort of tortious interference with business relations. FAIL if this legal distinction is not articulated.

— Harvey LAB, criterion C-020, task file at commit `1dd81403`

My assessment	
Criterion	Defective — unambiguous objective error (including hallucinations), rubric is incorrect
Task environment	Defective: the fictional summary-judgment order cites a case for the opposite of its holding and a case that cannot be found (citation sweep: 10 of 21 citations in this task have problems).
AI auditors' reasoning	Correct
LAB's own grading of two model runs (Harvey's judges, not my assessment)	
GPT-6 Luna	Sonnet 4.6 judge: fail; GPT-5.5 judge: fail
Claude Opus 5.5	Sonnet 4.6 judge: fail; GPT-5.5 judge: fail

My analysis. Multiple issues:

- First, this is a clear legal error. Georgia applies the same elements to interference with contractual and business relations. The rubric says the opposite of what Georgia law is. *Disaster Services, Inc. v. ERC P'ship*, 228 Ga. App. 739, 740–41 (1997) ("Tortious interference claims, whether asserting interference with contractual relations, business relations, or potential business relations, share certain common essential elements: (1) improper action or wrongful conduct by the defendant without privilege; (2) the defendant acted purposely and with malice with the intent to injure; (3) the defendant induced a breach of contractual obligations or caused a party or third parties to discontinue or fail to enter into an anticipated business relationship with the plaintiff; and (4) the defendant's tortious conduct proximately caused damage to the plaintiff.").
- Second, the fictional summary judgment order (from which the rubric's legal position seems to be taken) appears to contain several hallucinations. For example, the order paraphrases the third and fourth elements described in *Disaster Services* approximately correctly, but the first two elements are erroneously listed as "(1) the existence of a valid contract between the plaintiff and a third party; (2) the defendant's knowledge of the contract." The fictional order also cites *Valdosta Livestock, Inc. v. Furst*, 342 Ga. App. 25, 28 (2017), which is not found in any legal databases.

24. Review Litigation Invoice Against Outside Counsel Billing Guidelines — Compliance Deviation Report (C-024)

Quoted from Harvey LAB

Recommends full disallowance of black car service: $387.00. PASS if the report recommends disallowing the full $387.00 for black car service (or reducing it to a reasonable taxi/ride-share equivalent). FAIL if no disallowance or reduction is recommended.

— Harvey LAB, criterion C-024, task file at commit `1dd81403`

My assessment	
Criterion	Not defective
Task environment	Correct
AI auditors' reasoning	Wrong

LAB's own grading of two model runs (Harvey's judges, not my assessment)	
GPT-6 Luna	Sonnet 4.6 judge: pass; GPT-5.5 judge: pass
Claude Opus 5.5	Sonnet 4.6 judge: pass; GPT-5.5 judge: pass

My analysis. The billing guidelines state that "Reimbursable ground transportation is limited to ride-share ... or taxi" and "Limousine services and black car services are not reimbursable under any circumstances." Sol's critique of the rubric is that the policy requires disallowing black car reimbursement, not reducing the reimbursement amount to what a taxi or ride share would have cost. The rubric's interpretation (that either disallowing the expense entirely or capping reimbursement at the amount a taxi would have cost is acceptable) seems reasonable and closer to the likely real-world application of a policy like this.

25. Review Litigation Invoice Against Outside Counsel Billing Guidelines — Compliance Deviation Report (C-042)

Quoted from Harvey LAB

> **Classifies business class airfare as borderline/requires discussion.** PASS if the report classifies the business class airfare issue (Messina's $2,847.00 flight) as a borderline or 'requires discussion' issue rather than a clear-cut mandatory reduction, given the 4-hour-20-minute flight duration and the 4-hour threshold. FAIL if it is classified as a clear mandatory reduction without acknowledging the ambiguity, OR if it is entirely dismissed as compliant.
>
> — Harvey LAB, criterion C-042, task file at commit `1dd81403`

My assessment	
Criterion	Defective — unambiguous objective error, rubric is incorrect
Task environment	Correct
AI auditors' reasoning	Correct

LAB's own grading of two model runs (Harvey's judges, not my assessment)	
GPT-6 Luna	Sonnet 4.6 judge: pass; GPT-5.5 judge: pass
Claude Opus 5.5	Sonnet 4.6 judge: pass; GPT-5.5 judge: pass

My analysis. The rubric's analysis is wrong. The travel policy included in the environment states, "For domestic flights with a scheduled duration of four (4) hours or more, business class may be booked without prior approval." The record does not state the flight's duration (the invoice lists only the route and fare class). The only basis for raising this seems to be in the rubric itself, which says the flight could take 4h20m, but even under that view, there's nothing to discuss, as the policy allows business class for that duration.

E Human review of AI-flagged LegalReasonBench criteria

Sol and Opus each audited the 11 litigation assignments from micro1's public LegalReasonBench sample (dataset revision `1bfa904c`). They flagged a total of 63 criteria (out of the 179 they audited) as problematic or arguably problematic. The frame is the union of the two blind reports: a later Opus pass that reviewed both reports retained 36 of the 63, but all 63 remained eligible for sampling. I then reviewed a simple random sample of 25 of the 63 (seed 20261024, from 9 assignments) under a protocol committed prior to the draw. I applied the same standard as used for the LAB review.

I did not finalize my verdicts until after an adversarial quality-control process in which AI models (Claude Opus 5.5, Claude Fable 5.1, GPT-6 Sol, and GPT-6 Astra) were invited to argue in favor of and against each verdict that I had reached. I updated the documentation after the audit QC process to reflect the standards that I had applied during the audit more faithfully. Most notably, I determined that rubrics that fail an answer a competent lawyer would consider the correct/best answer or a clearly reasonable one should be treated as defective, since they train models to reject reasonable approaches.

The results were that 21 of 25 reviewed rubrics were defective, with 7 of these constituting unambiguous objective errors and the remainder constituting instances where the rubric enforces an unreasonable or inaccurate position on a question of professional judgment. I found that 12 items came from defective environments.

Statistically this analysis implies that, at the 95% confidence level, at least 45 of the criteria that AI models flagged as defective are in fact defective (the point estimate would be 53 defective criteria) and at least 11 are objective errors (point estimate is 18).

Rubric verdict	Environment defective	Environment correct	Total
Defective	10	11	21
Arguable	0	0	0
Not defective	2	2	4
Total	12	13	25

Table 9: My verdicts on the 25 sampled LegalReasonBench criteria, by whether the task environment itself contains a defect.

1. Petition for Writ of Certiorari for Quasi-judicial Proceeding, assignment 1: Legal Memorandum to Board of County Commissioners

criterion `states_in_the_first_assignment_that_dci2018_10023_remained_activ`

Quoted from micro1 LegalReasonBench

> **Penalty criterion, −15 points.** States in the first assignment that DCI2018-10023 remained active until September 13, 2023.
>
> — micro1 LegalReasonBench, `states_in_the_first_assignment_that_dci2018_10023_remained_activ`, rubric at revision `1bfa904c`

My assessment	
Criterion	Defective — unambiguous objective error; does not arise from the task environment
Task environment	Correct
AI auditors' reasoning	Correct
Sources and run details	Review worksheet, item 1
LegalReasonBench's own grading of two model runs (its judges, not my assessment)	
GPT-6 Luna (xhigh)	GPT-5.6 Terra: clear; Claude Sonnet 5: clear; Gemini 3.8 Flash: clear. Result: penalty not applied (0/3)
Claude Opus 5.5 (low)	GPT-5.6 Terra: fires; Claude Sonnet 5: clear; Gemini 3.8 Flash: clear. Result: penalty not applied (1/3)

My analysis. Confirmed. This rubric penalizes the model if the memo it drafts says that the 2019 zoning case was still pending until September 13, 2023, which is what the task environment indicates (Petition.docx p. 19: "the 2019 zoning case was left open until September 13, 2023").

The rubric's theory is that a county rule, Lee County Admin. Code AC-2-6 § 4.1.B(1), which is not cited in the environment but can be found using web search (which models are allowed to use here), says that remanded hearings must occur within six months and that applications will be considered withdrawn after that. But the rubric ignores that the case is withdrawn only "[i]f the six month deadline is not met because of action or inaction of the Applicant/Appellant." In addition, AC-2-6 § 4.1 is prefaced with a sentence that states that it governs only applications "remanded to the Hearing Examiner by the Board." The case actually concerns a remand from the Hearing Examiner to the staff (Petition.docx: "we jointly request that DCI2018-10023 be remanded back to the staff"), so the regulation does not apply by its terms.

This case appears to be drawn from a real litigation, Spahhn v. Lee County, No. 24-CA-1479 (Fla. 20th Cir. Ct. Oct. 25, 2025) (order granting petition for writ of certiorari), and the plaintiffs' position is that the case remained live to September 13, 2023 (contradicting the rubric); the county says the case was withdrawn in March 2022. Elsewhere the rubric claims the case was withdrawn on February 13, 2020 (companion criterion `states_in_the_first_assignment_that_under_lee_county_fla_admin_c`), but neither party advanced that claim, so the rubric seems to be contradicted by the ground-truth evidence from the litigation.

2. Petition for Writ of Certiorari for Quasi-judicial Proceeding, assignment 1: Legal Memorandum to Board of County Commissioners

criterion `states_in_the_first_assignment_that_the_county_should_cease_cons`

> Quoted from micro1 LegalReasonBench
>
> **Penalty criterion, −30 points.** States in the first assignment that the County should cease construction activities at the subject property.
>
> — micro1 LegalReasonBench, `states_in_the_first_assignment_that_the_county_should_cease_cons`, rubric at revision `1bfa904c`

My assessment	
Criterion	Defective — professional judgment; does not arise from the task environment
Task environment	Correct
AI auditors' reasoning	Correct
Sources and run details	Review worksheet, item 2
LegalReasonBench's own grading of two model runs (its judges, not my assessment)	
GPT-6 Luna (xhigh)	GPT-5.6 Terra: clear; Claude Sonnet 5: clear; Gemini 3.8 Flash: clear. Result: penalty not applied (0/3)
Claude Opus 5.5 (low)	GPT-5.6 Terra: fires; Claude Sonnet 5: fires; Gemini 3.8 Flash: clear. Result: penalty applied (2/3)

My analysis. Confirmed. The rubric deducts 30 points if the memo being prepared for a county in a zoning dispute recommends stopping construction.

The basis of this rubric is Parkway Towers Condominium Ass'n v. Metropolitan Dade County, 295 So. 2d 295 (Fla. 1974) (per curiam), which merely exercises discretion not to hear an appeal on certiorari. While it is true that the outcome in that particular case was that the county was allowed to proceed with construction, the court's reasoning, if anything, undercuts the rubric's reading: "Although we now consider our issuance of the writ of certiorari to have been improvident in this case, which results in our discharge thereof, it is nevertheless our view prospectively that zoning variations to accommodate county or municipal facility purposes should either have been anticipated in zoning ordinances before construction or operation of such facilities is commenced or, if this has not been done, construction should not be undertaken thereof until after due modification or change therefor is made in existing zoning ordinances." Id. at 295–96. In other words, the very case the rubric relies on essentially says the opposite of what it claims and expresses the Florida Supreme Court's view that zoning issues should be fixed before construction occurs.

The fact that some construction has begun is a relevant factor, but nothing in the environment establishes that it would be costly, impossible, or imprudent for the county to stop construction until the zoning issues are fixed properly to comply with the Court's opinion. Many prudent lawyers, relying on the Florida Supreme Court's guidance, might recommend addressing the zoning issue before continuing with construction, so this rubric fails a response many careful lawyers would prefer.

3. Petition for Writ of Certiorari for Quasi-judicial Proceeding, assignment 1: Legal Memorandum to Board of County Commissioners

criterion `states_in_the_first_assignment_that_the_county_should_file_a_tim`

> Quoted from micro1 LegalReasonBench
>
> **Reward criterion, +20 points.** States in the first assignment that the County should file a timely appeal with the 6th District Court of Appeals.
>
> — micro1 LegalReasonBench, `states_in_the_first_assignment_that_the_county_should_file_a_tim`, rubric at revision `1bfa904c`

My assessment	
Criterion	Defective — professional judgment; does not arise from the task environment
Task environment	Correct
AI auditors' reasoning	Correct
Sources and run details	Review worksheet, item 3
LegalReasonBench's own grading of two model runs (its judges, not my assessment)	
GPT-6 Luna (xhigh)	GPT-5.6 Terra: met; Claude Sonnet 5: met; Gemini 3.8 Flash: not met. Result: met (2/3)
Claude Opus 5.5 (low)	GPT-5.6 Terra: met; Claude Sonnet 5: met; Gemini 3.8 Flash: met. Result: met (3/3)

My analysis. Rubrics 23 and 24 (criteria `states_in_the_first_assignment_that_the_county_should_file_a_tim` and `states_in_the_first_assignment_that_the_county_should_remand_the`, +20 each) require the government to simultaneously pursue an appeal and remand to a hearing examiner to fix the deficiencies the Court identified. I agree with Sol that the recommendation to take an appeal is not mandatory here and there are very good reasons not to appeal. While a party who loses in the trial court often wishes to appeal, the trial court's ruling here allows the government to reach the same conclusion it originally did after correcting some deficiencies in the process followed the first time. Often simply correcting the deficiencies identified by a trial court would be faster and more reliable for a government to proceed with a project than appealing.

Although the government in the real litigation did elect to simultaneously appeal and remand the issue to the hearing examiner (as the rubric recommends), the government's filing in the appeal acknowledged that the remand might moot the appeal. The government argued the appeal should still be considered because it wanted to undo the trial court's finding that the government had been biased in approving the initial rezoning, but that is a very debatable position (and arguably not a strong basis for an appeal).

The second level of certiorari review is also limited to whether the circuit court afforded procedural due process and applied the correct law, so the appeal appears to be somewhat weak on the merits (or at least not such an obvious winner that a lawyer in this spot would always advise bringing the appeal, rather than just trying to clean up the issues the lower court flagged). *See Haines City Cmty. Dev. v. Heggs*, 658 So. 2d 523, 530 (Fla. 1995). Filing a protective appeal is reasonable and probably the default most lawyers would implement, but in the case of a government entity, simply curing the identified defects on remand may work equally well. So this case does not seem to require an appeal—that's really a judgment call—so the rubric would incorrectly penalize a failure to pursue a strategy many lawyers would advise against.

4. Petition for Writ of Certiorari for Quasi-judicial Proceeding, assignment 1: Legal Memorandum to Board of County Commissioners

criterion `states_in_the_first_assignment_that_the_county_should_remand_the`

> Quoted from micro1 LegalReasonBench
>
> **Reward criterion, +20 points.** States in the first assignment that the County should remand the case to the Hearing Examiner to address the deficiencies identified in the Order Granting Writ of Certiorari while an appeal is pending.
>
> — micro1 LegalReasonBench, `states_in_the_first_assignment_that_the_county_should_remand_`

My assessment	
Criterion	Defective — professional judgment; does not arise from the task environment
Task environment	Correct
AI auditors' reasoning	Correct
Sources and run details	Review worksheet, item 4

LegalReasonBench's own grading of two model runs (its judges, not my assessment)	
GPT-6 Luna (xhigh)	GPT-5.6 Terra: not met; Claude Sonnet 5: not met; Gemini 3.8 Flash: not met. Result: not met (0/3)
Claude Opus 5.5 (low)	GPT-5.6 Terra: not met; Claude Sonnet 5: not met; Gemini 3.8 Flash: not met. Result: not met (0/3)

My analysis. With respect to the rubric recommending remand to the hearing officer, I agree with the aspect of it that recommends remand: remand to the Hearing Examiner to fix issues identified by a court is the standard approach a government would follow in this spot. But as written, the criterion requires remand "while an appeal is pending," so it also requires an appeal, and it would therefore reject a remand-only recommendation that a careful litigator could adopt, for the reasons given for criterion 23 (item 3). A memo that recommends remand without an appeal would fail it. Sol flagged it (as arguable) on this same ground.

5. Petition for Writ of Certiorari for Quasi-judicial Proceeding, assignment 1: Legal Memorandum to Board of County Commissioners

criterion `states_in_the_first_assignment_that_under_fla_stat_163_3167_10_2`

Quoted from micro1 LegalReasonBench

> **Reward criterion, +10 points.** States in the first assignment that under Fla. Stat § 163.3167(10) (2025) the development order issued for the project may not be invalidated by a subsequent judicial determination because the timeframe for filing an appeal of the development order has expired.
>
> — micro1 LegalReasonBench, `states_in_the_first_assignment_that_under_fla_stat_163_3167_10_2`, rubric at revision 1bfa904c

My assessment	
Criterion	Defective — unambiguous objective error; does not arise from the task environment
Task environment	Correct
AI auditors' reasoning	Correct
Sources and run details	Review worksheet, item 5

LegalReasonBench's own grading of two model runs (its judges, not my assessment)	
GPT-6 Luna (xhigh)	GPT-5.6 Terra: not met; Claude Sonnet 5: not met; Gemini 3.8 Flash: not met. Result: not met (0/3)
Claude Opus 5.5 (low)	GPT-5.6 Terra: not met; Claude Sonnet 5: not met; Gemini 3.8 Flash: not met. Result: not met (0/3)

My analysis. This rubric is deeply confused about the meaning of the statutory provision it's relying on. Fla. Stat. § 163.3167(10) (2025) protects the developer and allows a project to continue

in a situation where no one challenges that specific development, but a later case (typically involving a different development) invalidates the regulation under which the first development was approved. In that scenario, the developer whose project was approved (with no one challenging it) is entitled to proceed notwithstanding the fact that the regulations the first developer relied on were later invalidated in a *different* case. That principle has no relevance here, where the project at issue was timely challenged by a petition for a writ of certiorari, and a court invalidated the approval for the specific project that was timely challenged.

The statute also applies only when a later court decision rules the land development regulations themselves "invalid because of a deficiency in the approval standards." That is not what occurred here. The circuit court quashed the rezoning after finding defects in the Board's specific decision here, but did not invalidate Lee County's regulations. So even if the criterion were read to refer to some later development order issued under the rezoning, § 163.3167(10) would not address it.

6. Petition for Writ of Certiorari for Quasi-judicial Proceeding, assignment 1: Legal Memorandum to Board of County Commissioners

criterion `states_in_the_first_assignment_that_under_lee_county_fla_admin_c`

> Quoted from micro1 LegalReasonBench
>
> **Reward criterion, +5 points.** States in the first assignment that under Lee County, Fla. Admin. Code § 2-6, 4.1 B. (2025), DCI2018-10023 was considered withdrawn on February 13, 2020.
>
> — micro1 LegalReasonBench, `states_in_the_first_assignment_that_under_lee_county_fla_admin_c`, rubric at revision `1bfa904c`

My assessment	
Criterion	Defective — unambiguous objective error; does not arise from the task environment
Task environment	Correct
AI auditors' reasoning	Correct
Sources and run details	Review worksheet, item 6

LegalReasonBench's own grading of two model runs (its judges, not my assessment)	
GPT-6 Luna (xhigh)	GPT-5.6 Terra: not met; Claude Sonnet 5: not met; Gemini 3.8 Flash: not met. Result: not met (0/3)
Claude Opus 5.5 (low)	GPT-5.6 Terra: not met; Claude Sonnet 5: not met; Gemini 3.8 Flash: not met. Result: not met (0/3)

My analysis. Wrong for the same reasons as item 1. Neither party in the actual litigation contends that the six-month deadline was missed "because of action or inaction of the Applicant/Appellant." There's nothing in the environment to support that claim, and without a factual predicate for that, there's no factual basis for suggesting that Lee County Admin. Code AC-2-6 § 4.1.B(1) (2025) applies here. In addition, AC-2-6 § 4.1 is prefaced with a sentence that states that it governs only applications "remanded to the Hearing Examiner by the Board." The case actually concerns a remand from the Hearing Examiner to the staff (Petition.docx: "we jointly request that DCI2018-10023 be remanded back to the staff"), so the regulation does not apply by its terms.

7. Petition for Writ of Certiorari for Quasi-judicial Proceeding, assignment 2: Brief Requesting Second-Tier Review

criterion `states_in_the_second_assignment_that_expert_testimony_on_the_rec`

> Quoted from micro1 LegalReasonBench
>
> **Reward criterion, +5 points.** States in the second assignment that expert testimony on the record is competent substantial evidence that supports the Board's approval of the rezoning.
>
> — micro1 LegalReasonBench, `states_in_the_second_assignment_that_expert_testimony_on_the_rec`, rubric at revision `1bfa904c`

My assessment	
Criterion	Not defective
Task environment	Correct
AI auditors' reasoning	Wrong
Sources and run details	Review worksheet, item 7

LegalReasonBench's own grading of two model runs (its judges, not my assessment)	
GPT-6 Luna (xhigh)	GPT-5.6 Terra: not met; Claude Sonnet 5: not met; Gemini 3.8 Flash: not met. Result: not met (0/3)
Claude Opus 5.5 (low)	GPT-5.6 Terra: not met; Claude Sonnet 5: not met; Gemini 3.8 Flash: not met. Result: not met (0/3)

My analysis. Correct as written. Sol initially suggested that this rubric was arguably defective, because it rewards models for making the point that the expert testimony in the record can support the Board's zoning approval. Sol's concern was that the expert testimony is not actually in the environment provided. While Sol correctly points out that the testimony is not in the environment, the Petition quotes portions of the testimony with citations to the transcripts, and other material in the environment does make clear that expert analysis was used to support the Board's decision. It's a relatively uncontroversial proposition, the relevance of which can be readily inferred from the environment, and my view is that any competent lawyer would consider adding that point (at least briefly) an improvement to the analysis.

8. Petition for Writ of Certiorari for Quasi-judicial Proceeding, assignment 2: Brief Requesting Second-Tier Review

criterion `states_in_the_second_assignment_that_the_staff_report_recommendi`

> Quoted from micro1 LegalReasonBench
>
> **Reward criterion, +5 points.** States in the second assignment that the staff report recommending approval is competent substantial evidence that supports the Board's approval of the rezoning.
>
> — micro1 LegalReasonBench, `states_in_the_second_assignment_that_the_staff_report_recommendi`, rubric at revision `1bfa904c`

My assessment	
Criterion	Not defective
Task environment	Correct
AI auditors' reasoning	Wrong
Sources and run details	Review worksheet, item 8

LegalReasonBench's own grading of two model runs (its judges, not my assessment)	
GPT-6 Luna (xhigh)	GPT-5.6 Terra: not met; Claude Sonnet 5: not met; Gemini 3.8 Flash: not met. Result: not met (0/3)
Claude Opus 5.5 (low)	GPT-5.6 Terra: not met; Claude Sonnet 5: not met; Gemini 3.8 Flash: not met. Result: not met (0/3)

My analysis. Correct as written. This is a similar issue to item 7. The rubric wants models to make the point that the staff report is evidence supporting the Board's approval. Sol says the underlying staff report is not part of the environment, but it is referenced in other documents, and any competent lawyer in this situation would want the fact that such a report exists to be cited, as it's clearly going to be important evidence in support of the government's position.

9. Viability of a DCCA Challenge, assignment 1: Record Mapping: Final Notice Against Award

criterion `criterion_8`

> Quoted from micro1 LegalReasonBench
>
> **Reward criterion, +28 points.** Identifies that the comparator memorandum's stated coverage years conflict with the dates of the cases it summarizes.
>
> — micro1 LegalReasonBench, `criterion_8`, rubric at revision `1bfa904c`

My assessment	
Criterion	Defective — unambiguous objective error; does not arise from the task environment
Task environment	Defective: Award ¶ 7 says "Two of the four comparators involved on-duty conduct," but the comparator memorandum shows three on duty (Guzman, Sadler and Voss; only Pietrzak was off duty), so the arbitrator's comparability finding misstates the record it rests on. The memorandum also says "The Commonwealth declined prosecution" of an off-duty shooting in the District.
AI auditors' reasoning	Correct
Sources and run details	Review worksheet, item 9

LegalReasonBench's own grading of two model runs (its judges, not my assessment)	
GPT-6 Luna (xhigh)	GPT-5.6 Terra: not met; Claude Sonnet 5: not met; Gemini 3.8 Flash: not met. Result: not met (0/3)
Claude Opus 5.5 (low)	GPT-5.6 Terra: not met; Claude Sonnet 5: not met; Gemini 3.8 Flash: not met. Result: not met (0/3)

My analysis. It's unclear how this rubric got created, since this seems like a straightforward mistake that even a nonlawyer would catch. The rubric rewards models for identifying that the "comparator memorandum's stated coverage years conflict with the dates of the cases it summarizes." But both documents cited as the source for this have the correct dates. The memo says it reviewed

"records covering calendar years 2018 through 2021." It then lists cases from August 2018, November 2019, May 2020, and March 2021, which were resolved in January 2019, June 2020, February 2021, and October 2021, respectively. There is no mismatch, so this rubric would reward models for hallucinating a mismatch that is not present in the environment.

10. Viability of a DCCA Challenge, assignment 2: Scope of Review

criterion `criterion_4`

> Quoted from micro1 LegalReasonBench
>
> **Reward criterion, +26 points.** Identifies that no uploaded authority requires MPD to prove the comparability of its comparator cases.
>
> — micro1 LegalReasonBench, `criterion_4`, rubric at revision `1bfa904c`

My assessment	
Criterion	Defective — unambiguous objective error; does not arise from the task environment
Task environment	Defective: Award ¶ 7 says "Two of the four comparators involved on-duty conduct," but the comparator memorandum shows three on duty (Guzman, Sadler and Voss; only Pietrzak was off duty), so the arbitrator's comparability finding misstates the record it rests on. The memorandum also says "The Commonwealth declined prosecution" of an off-duty shooting in the District.
AI auditors' reasoning	Correct
Sources and run details	Review worksheet, item 10
LegalReasonBench's own grading of two model runs (its judges, not my assessment)	
GPT-6 Luna (xhigh)	GPT-5.6 Terra: met; Claude Sonnet 5: not met; Gemini 3.8 Flash: met. Result: met (2/3)
Claude Opus 5.5 (low)	GPT-5.6 Terra: met; Claude Sonnet 5: met; Gemini 3.8 Flash: met. Result: met (3/3)

My analysis. The rubric wants an analysis of an employee disciplinary dispute to make the point that "no uploaded authority requires MPD to prove the comparability of its comparator cases." But *Douglas v. Veterans Administration*, 5 M.S.P.B. 313, 5 M.S.P.R. 280 (1981), one of the uploaded authorities, states that "it should be clear that the ultimate burden is upon the agency to persuade the Board [the Merit Systems Protection Board] of the appropriateness of the penalty imposed." *Id.* at 333. It adds that "[t]he selection of an appropriate penalty is a distinct element of the agency's decision, and therefore properly within its burden of persuasion," and that when the employee "challenges the severity of the penalty," as Braddock did (the stipulated arbitral issue was whether "the penalty of termination [is] appropriate"), "the agency will be called upon to present such further evidence." *Id.* at 334.

That language comes just after a list of 12 factors that prior rulings have identified as relevant for determining the appropriateness of a penalty, which includes (as factor six) "consistency of the penalty with those imposed upon other employees for the same or similar offenses." *Id.* at 332. *Douglas* does note that "Not all of these factors will be pertinent in every case," so there is no bright-line requirement that the agency prove factor six in every case. But *Douglas* makes clear that the burden is on the agency to establish the appropriateness of the penalty and comparability is expressly identified as an important factor in assessing appropriateness.

Critically, in this specific case, MPD's Final Notice of Adverse Action expressly relied on comparable cases as an aggravating factor and a key factor for terminating Officer Braddock. Thus, in the context of this case, the proposition the rubric wants the AI to assert is wrong. If MPD cannot prove to the arbitrator that the comparator officers were similarly situated (as the Final Notice asserts, and as the arbitrator found MPD did not), that could be a basis for at least vacating the termination decision and remanding it for further consideration. Sol and Opus labeled this as an arguable defect, but under the specific circumstances of this case, I would view this assertion as objectively inaccurate. Failure to prove up the comparable cases does not automatically invalidate MPD's action, but it leaves MPD highly vulnerable to being overturned—so in this context, MPD does need to prove the comparable cases that it relied on in making its decision to terminate Braddock.

This rubric appears to be lifted from a real case that matches the fact pattern in the task, *D.C. Metropolitan Police Department v. D.C. Public Employee Relations Board*, 282 A.3d 598 (D.C. 2022), and No. 24-CV-0573 (D.C. May 21, 2026), where MPD explicitly argued that it was not required to put forward comparable cases. But in the real case, the issue was that MPD had not identified any comparable cases where termination was the discipline imposed, and the terminated officer's union came forward with cases involving comparable conduct where the punishment was less severe. The task environment here was modified from the real case, so that in this fictional universe, MPD itself puts comparable cases at issue in its initial decision terminating the officer. In that context, the argument advanced in the real case no longer holds and the rubric is incorrect because it fails to take into account how this task environment was modified from the real case. The rubric is essentially importing a proposition of law from the real case without recognizing that the task environment was changed in a way that makes that proposition irrelevant on the facts being presented to the model.

11. Viability of a DCCA Challenge, assignment 3: Statutory Exceptions

criterion `criterion_16`

> Quoted from micro1 LegalReasonBench
>
> **Reward criterion, +6 points.** Identifies that the PERB Decision misstates the length of the suspension imposed by the Award.
>
> — micro1 LegalReasonBench, `criterion_16`, rubric at revision `1bfa904c`

My assessment	
Criterion	Not defective
Task environment	Defective: Award ¶ 7 says "Two of the four comparators involved on-duty conduct," but the comparator memorandum shows three on duty (Guzman, Sadler and Voss; only Pietrzak was off duty), so the arbitrator's comparability finding misstates the record it rests on. The memorandum also says "The Commonwealth declined prosecution" of an off-duty shooting in the District.
AI auditors' reasoning	Wrong
Sources and run details	Review worksheet, item 11

LegalReasonBench's own grading of two model runs (its judges, not my assessment)	
GPT-6 Luna (xhigh)	GPT-5.6 Terra: met; Claude Sonnet 5: met; Gemini 3.8 Flash: met. Result: met (3/3)
Claude Opus 5.5 (low)	GPT-5.6 Terra: met; Claude Sonnet 5: met; Gemini 3.8 Flash: met. Result: met (3/3)

My analysis. Rubric is correct. The rubric wants an internal memorandum to point out that the D.C. Public Employee Relations Board's decision incorrectly states that the officer was suspended for 40 days, when in fact the suspension was 45 days.

Sol's point is that the prompt did not specifically request that analysis. But the prompt directs the associate to "[a]nchor each argument in specific findings of the Award and the PERB Decision," and a careful lawyer doing that would notice that the decision misstates the penalty it affirmed "in all respects." While I agree that it is not necessarily essential for a memo to call out what appears to be a typo in the Board's decision, doing so does improve an internal memo—and this is a situation where it would be desirable to train models to flag that discrepancy even if the user did not specifically prompt for it. The misstatement of fact in the Board's decision affirming the arbitration award is important information for the lawyer to be aware of, and a lawyer using AI to prepare this memo might not think to ask specifically about those kinds of discrepancies. So the rubric is a desirable training signal, and to the extent it asks the model to go somewhat beyond the prompt, this specific example is a good instance where you clearly would want the model to flag an issue that you might not have thought to ask about in your prompt.

12. Plaintiff's Response - Forum Non Conveniens, assignment 1

criterion `criterion_2`

> Quoted from micro1 LegalReasonBench
>
> **Reward criterion, +5 points.** Identifies in Assignment #1 an affidavit by John Smith, M.D. does not indicate that Cook County would be an inconvenient forum for him to litigate this case as required under Langenhorst v. Norfolk S. Ry. Co., 219 Ill. 2d 430 (Ill. 2006).
>
> — micro1 LegalReasonBench, `criterion_2`, rubric at revision `1bfa904c`

My assessment	
Criterion	Not defective
Task environment	Defective: The partner's email says Baby Davis was transferred to "Lurie's Children's Hospital" and "almost passed away on September 16, 2024," but the Complaint says he was transferred to and died at Cook County Hospital (¶¶ 27, 29). The defendants' filed affidavits also carry unfilled placeholders: Dr. Smith's affidavit gives his residence and office as "[street address], [city]" (Ex. A ¶¶ 2–3), and the hospital's affiant is named only as "[Records Custodian]" (Ex. B).
AI auditors' reasoning	Wrong
Sources and run details	Review worksheet, item 12

LegalReasonBench's own grading of two model runs (its judges, not my assessment)	
GPT-6 Luna (xhigh)	GPT-5.6 Terra: met; Claude Sonnet 5: not met; Gemini 3.8 Flash: not met. Result: not met (1/3)
Claude Opus 5.5 (low)	GPT-5.6 Terra: met; Claude Sonnet 5: met; Gemini 3.8 Flash: met. Result: met (3/3)

My analysis. Rubric is correct as written. The case involves a request by defendants to move a case from Cook County (where Chicago is located) to DuPage County (a bordering county immediately west of Cook County, with Chicago O'Hare airport extending partially into DuPage County). One of the defendants, Dr. John Smith, submitted an affidavit arguing that DuPage County is more

convenient than Cook County, but it does not expressly state that Cook County is "inconvenient." The rubric wants a memo analyzing the issue to point out that Dr. Smith does not state in his affidavit that it would be inconvenient for him to litigate in Cook County.

Sol initially flagged the criterion as arguable, reasoning that because Dr. Smith swears DuPage would be "substantially more convenient" than Cook, "[a] careful reviewer could reasonably treat that as comparative inconvenience." But the rubric is correct because it's pointing out that the standard isn't which location is "more" convenient; a defendant seeking to move on forum non conveniens grounds needs to establish that the plaintiff's chosen forum is actually inconvenient to the defendant.

The task environment contains a decision, *Langenhorst v. Norfolk Southern Railway Co.*, 219 Ill. 2d 430, 848 N.E.2d 927 (2006), that states the rule drawing this distinction between an argument that another location would be "more" convenient for one party and proof that the plaintiff's chosen location is actually inconvenient: "The defendant must show that the plaintiff's chosen forum is inconvenient to the defendant and that another forum is more convenient to all parties." 219 Ill. 2d at 444. So Sol's point is not well taken in this instance. The later reconciliation overturned Sol's flag on this ground.

13. Plaintiff's Response - Forum Non Conveniens, assignment 1

criterion `criterion_22`

> Quoted from micro1 LegalReasonBench
>
> **Penalty criterion, −30 points.** Mentions in Assignment #1 that Cook County lacks interest in adjudicating a controversy over care rendered by its DuPage based providers.
>
> — micro1 LegalReasonBench, `criterion_22`, rubric at revision `1bfa904c`

My assessment	
Criterion	Defective — professional judgment; does not arise from the task environment
Task environment	Defective: The partner's email says Baby Davis was transferred to "Lurie's Children's Hospital" and "almost passed away on September 16, 2024," but the Complaint says he was transferred to and died at Cook County Hospital (¶¶ 27, 29). The defendants' filed affidavits also carry unfilled placeholders: Dr. Smith's affidavit gives his residence and office as "[street address], [city]" (Ex. A ¶¶ 2–3), and the hospital's affiant is named only as "[Records Custodian]" (Ex. B).
AI auditors' reasoning	Correct
Sources and run details	Review worksheet, item 13
LegalReasonBench's own grading of two model runs (its judges, not my assessment)	
GPT-6 Luna (xhigh)	GPT-5.6 Terra: clear; Claude Sonnet 5: clear; Gemini 3.8 Flash: clear. Result: penalty not applied (0/3)
Claude Opus 5.5 (low)	GPT-5.6 Terra: clear; Claude Sonnet 5: clear; Gemini 3.8 Flash: clear. Result: penalty not applied (0/3)

My analysis. The rubric penalizes a memo that "Mentions . . . that Cook County lacks interest in adjudicating a controversy over care rendered by its DuPage based providers." The rubric is subtly misspecified in a way that can affect the grading. The reason the rubric is penalizing a memo that raises this point is that the environment contains a case, *Bradbury v. St. Mary's Hospital*

of Kankakee, 273 Ill. App. 3d 555, 652 N.E.2d 1228 (1st Dist. 1995), that indicates that Cook County has an interest in situations like these if the patient died there—and the case at issue in the environment involves a patient death, so the theory underlying the rubric is sound.

However, the defendants do argue in their motion that Cook County has limited interest in the death—and as written the rubric penalizes any memo that even "mentions" that Cook County lacks interest. So a grader could apply this penalty even to a memo that simply "mentions" the defendants' argument and then correctly explains why it's wrong under *Bradbury*.

In our test runs, the judges did not impose the penalty for this specific rubric, but penalties were triggered improperly on other rubrics that used the same "Mentions" format, such as criterion 25 ("Mentions in Assignment #1 that Cook County's overall clearance rate is 60.5%," -30), where all judges penalized the models for correctly raising an opponent's argument and rebutting it.

14. Plaintiff's Response - Forum Non Conveniens, assignment 2

criterion `criterion_1`

> Quoted from micro1 LegalReasonBench
>
> **Reward criterion, +3 points.** States in Assignment #2 that the response is supported by the affidavit of Liam Vance, a physician who provided care to Baby Davis at Cook County Hospital.
>
> — micro1 LegalReasonBench, `criterion_1`, rubric at revision `1bfa904c`

My assessment	
Criterion	Defective — professional judgment; arises from the task environment
Task environment	Defective: No affidavit from any of the five physicians is provided in the environment, and the prompt does not explicitly instruct the model to create one. The prompt also says, "If a document is not uploaded, it does not exist for purposes of this analysis."
AI auditors' reasoning	Correct
Sources and run details	Review worksheet, item 14

LegalReasonBench's own grading of two model runs (its judges, not my assessment)	
GPT-6 Luna (xhigh)	GPT-5.6 Terra: not met; Claude Sonnet 5: not met; Gemini 3.8 Flash: not met. Result: not met (0/3)
Claude Opus 5.5 (low)	GPT-5.6 Terra: met; Claude Sonnet 5: met; Gemini 3.8 Flash: met. Result: met (3/3)

My analysis. The rubric wants the plaintiff's opposition brief (in response to defendants' forum non conveniens motion) to state that the plaintiff's "response is supported by the affidavit of Liam Vance, a physician who provided care to Baby Davis at Cook County Hospital." But no such affidavit is provided in the environment, and the prompt does not explicitly instruct the model to create it. The prompt further says "Do not rely on, reference, or infer any legal authority, factual information, or data beyond what is contained in these uploaded files. If a document is not uploaded, it does not exist for purposes of this analysis." While the prompt elsewhere says, "Please include all affidavits and information you referenced from Assignment #1," that suggests the model should "include" documents that were referenced in the environment, not generate new ones or assume that they will be created separately. Although the assignment 1 rubric rewards recommending that the plaintiff obtain affidavits from these physicians, and the assignment 2 prompt asks the model to include

the affidavits referenced in assignment 1, I would still consider drafting a brief that assumes what third-party witnesses will sign to be hazardous and unreliable.

Drafting an opposition brief that cites to affidavits (without placeholders in the draft) is extremely hazardous behavior to train models on in a legal setting. In a real run, Opus was rewarded for drafting affidavits and including in the brief citations to them without placeholders, while Luna did not create the affidavits or cite to them. If forced to choose, I would consider Luna's approach more correct in this instance, as a matter of professional judgment. Although Luna's approach suffered from its own flaws (including that it incorrectly said the record does not reflect the physicians' willingness to testify), I would prefer the approach of not citing affidavits that don't yet exist.

The contemplated affidavits are from nonparty physicians that the case team does not represent; while it is helpful that a lawyer on the case team spoke to these witnesses and obtained an understanding of their views that can be turned into a draft affidavit, ultimately a nonparty is entitled to decide exactly what it is willing to affirm in writing and a lawyer cannot simply assume that the witness will be willing to sign an affidavit based on the lawyer's understanding from an initial call. The normal approach in a situation like this would be to draft placeholder citations to an affidavit that make clear the language must be adjusted to conform to the witness's final testimony. Opus's draft affidavit includes one form for five physicians, and in practice, I would expect the physicians to object to some of what is included in the affidavit (and in fact getting all five to actually sign these affidavits in time would be a fairly significant undertaking, so I would not assume all five affidavits ultimately enter into the record as this assignment contemplates). The Opus work product creates a real risk that a human lawyer, through inadvertence or mistake, might file a brief that claims to be supported by affidavits that have not in fact been sworn, which is a serious ethical lapse.

Overall, the practical effect of this rubric seems to be to nudge the model in the direction of thinking it is OK to invent witness testimony that has not yet been approved by a witness. The issue could be avoided either by including an actual affidavit approved by the witness in the environment or asking the model to merely include bracketed text/placeholders that are clearly labeled as draft so that the draft is clear and explicit that the affidavits are contemplated or expected, rather than already secured, as Opus's draft of the brief implies.

This issue is distinct from items 7 and 8, where my view was that it was appropriate for a model to refer in a brief to expert analysis that was referred to in the environment but not supplied. In that case, we had clear indications that the expert analysis described really existed; the full details were simply not provided in the model prompt, so it is important to flag the existence of that evidence apparently already present in the record. Here, the environment makes clear that, for purposes of this assignment, the affidavits do not exist, yet the rubric rewards a model for creating a draft that could easily be filed mistakenly with the false assertion that these doctors have provided affidavits to support their views (which may or may not ultimately come to pass).

15. Plaintiff's Response - Forum Non Conveniens, assignment 2

criterion `criterion_11`

> Quoted from micro1 LegalReasonBench
>
> **Reward criterion, +5 points.** States in Assignment #2 that the response is supported by the affidavit of the plaintiff, Sara Davis.
>
> — micro1 LegalReasonBench, `criterion_11`, rubric at revision `1bfa904c`

My assessment	
Criterion	Defective — professional judgment; arises from the task environment
Task environment	Defective: No affidavit from Sara Davis is provided in the environment, and the prompt does not explicitly instruct the model to create one. The only fact supplied about her circumstances is that she "resides in Kane County, Illinois."
AI auditors' reasoning	Correct
Sources and run details	Review worksheet, item 15
LegalReasonBench's own grading of two model runs (its judges, not my assessment)	
GPT-6 Luna (xhigh)	GPT-5.6 Terra: not met; Claude Sonnet 5: not met; Gemini 3.8 Flash: not met. Result: not met (0/3)
Claude Opus 5.5 (low)	GPT-5.6 Terra: met; Claude Sonnet 5: not met; Gemini 3.8 Flash: met. Result: met (2/3)

My analysis. This has the same problem as item 14 of asking the model to draft (apparently without placeholders) an assertion that a given point is supported by an affidavit that does not exist. This one is a closer call because the affiant is the client, so the lawyers preparing this opposition brief presumably can be more confident in what the client's testimony will be. But even a client needs to be comfortable that the facts they are swearing to are accurate and may tell the lawyer to change them, so preparing a complete sworn affidavit containing facts found nowhere in the record, and citing it in the brief as sworn fact, as Opus has done (and was fully rewarded for, on a 2–1 vote), is still hazardous.

There is a separate issue here where Sonnet misgraded the rubric because it refers to Assignment #2 in the actual rubric text that is supplied to the judge model, but that is a reference to the prompt the generative models receive and should not be in the output. Sonnet did the same thing on three other criteria in this run (criteria 4, 5 and 22), failing the brief only because it had no "Assignment #2" label; in each case the other two judges passed it, so the majority result did not change. For purposes of this exercise, I am not treating that as a rubric defect because all the rubrics in the land-use and forum non conveniens matters have the issue that they refer to a specific assignment number that is not legible to the judge grader. That is an overarching issue in the benchmark setup that can be addressed globally.

16. Plaintiff's Response - Forum Non Conveniens, assignment 2

criterion `criterion_18`

> Quoted from micro1 LegalReasonBench
>
> **Penalty criterion, −30 points.** States in Assignment #2 that the 2023 Illinois Annual Report Statistics report a 60.5% clearance rate in Cook County, Illinois.
>
> — micro1 LegalReasonBench, `criterion_18`, rubric at revision `1bfa904c`

My assessment	
Criterion	Defective — professional judgment; does not arise from the task environment
Task environment	Defective: No affidavit from any of the five physicians or from Sara Davis is provided in the environment, and the prompt does not explicitly instruct the model to create one. The prompt also says, "If a document is not uploaded, it does not exist for purposes of this analysis."
AI auditors' reasoning	Correct
Sources and run details	Review worksheet, item 16
LegalReasonBench's own grading of two model runs (its judges, not my assessment)	
GPT-6 Luna (xhigh)	GPT-5.6 Terra: fires; Claude Sonnet 5: fires; Gemini 3.8 Flash: fires. Result: penalty applied (3/3)
Claude Opus 5.5 (low)	GPT-5.6 Terra: fires; Claude Sonnet 5: fires; Gemini 3.8 Flash: fires. Result: penalty applied (3/3)

My analysis. The rubric penalizes models for stating that the 2023 Illinois Annual Report Statistics report a 60.5% clearance rate in Cook County, Illinois. But that document is provided in the environment and does indeed report the rate given as the clearance rate for all cases. In our test runs, Opus and Luna were both penalized incorrectly for noting this figure while explaining why it deserved little weight: Opus contrasted it with the civil-case rates (97.9% and 96.3%), and Luna said it "expressly covers all case types." While some lawyers prefer not to raise bad facts that the other side has not raised, here, the defendants' opening brief squarely presents the 60.5% statistic to the Court—so any competent opposition would respond to that argument. There is no reason to penalize a model for doing so.

17. Plaintiff's Response - Forum Non Conveniens, assignment 2

criterion `criterion_3`

> Quoted from micro1 LegalReasonBench
>
> **Reward criterion, +3 points.** States in Assignment #2 that the response is supported by the affidavit of Caleb Montgomery, a physician who provided care to Baby Davis at Cook County Hospital.
>
> — micro1 LegalReasonBench, `criterion_3`, rubric at revision `1bfa904c`

My assessment	
Criterion	Defective — professional judgment; arises from the task environment
Task environment	Defective: No affidavit from any of the five physicians is provided in the environment, and the prompt does not explicitly instruct the model to create one. The prompt also says, "If a document is not uploaded, it does not exist for purposes of this analysis."
AI auditors' reasoning	Correct
Sources and run details	Review worksheet, item 17
LegalReasonBench's own grading of two model runs (its judges, not my assessment)	
GPT-6 Luna (xhigh)	GPT-5.6 Terra: not met; Claude Sonnet 5: not met; Gemini 3.8 Flash: not met. Result: not met (0/3)
Claude Opus 5.5 (low)	GPT-5.6 Terra: met; Claude Sonnet 5: met; Gemini 3.8 Flash: met. Result: met (3/3)

My analysis. Same issue as item 14. The criterion rewards a brief for saying the response is supported by an affidavit that does not exist in the environment (and which the model is not instructed to create). This is one of several rubrics we deemed defective for encouraging models to cite to affidavits that do not exist or have not been settled/signed by the third-party witnesses whose views they purport to represent (14, 15 and 17–20).

18. Plaintiff's Response - Forum Non Conveniens, assignment 2

criterion `criterion_6`

> Quoted from micro1 LegalReasonBench
>
> **Reward criterion, +3 points.** Identifies in Assignment #2 that the affidavit by Liam Vance indicates that DuPage County would be an inconvenient forum for him to litigate this case as required under Langenhorst v. Norfolk S. Ry. Co. 219 Ill. 2d 430 (Ill. 2006).
>
> — micro1 LegalReasonBench, `criterion_6`, rubric at revision `1bfa904c`

My assessment	
Criterion	Defective — professional judgment; arises from the task environment
Task environment	Defective: No affidavit from any of the five physicians is provided in the environment, and the prompt does not explicitly instruct the model to create one. The prompt also says, "If a document is not uploaded, it does not exist for purposes of this analysis."
AI auditors' reasoning	Correct
Sources and run details	Review worksheet, item 18
LegalReasonBench's own grading of two model runs (its judges, not my assessment)	
GPT-6 Luna (xhigh)	GPT-5.6 Terra: not met; Claude Sonnet 5: not met; Gemini 3.8 Flash: not met. Result: not met (0/3)
Claude Opus 5.5 (low)	GPT-5.6 Terra: met; Claude Sonnet 5: met; Gemini 3.8 Flash: met. Result: met (3/3)

My analysis. Same issue as item 14. The criterion rewards a brief for saying an affidavit that does not exist in the environment (and which the model is not instructed to create) shows that DuPage County would be an inconvenient forum. This is one of several rubrics we deemed defective for encouraging models to cite to affidavits that do not exist or have not been settled/signed by the

third-party witnesses whose views they purport to represent (14, 15 and 17–20).

19. Plaintiff's Response - Forum Non Conveniens, assignment 2

criterion `criterion_8`

> Quoted from micro1 LegalReasonBench
>
> **Reward criterion, +3 points.** Identifies in Assignment #2 that the affidavit by Caleb Montgomery indicates that DuPage County would be an inconvenient forum for him to litigate this case as required under Langenhorst v. Norfolk S. Ry. Co. 219 Ill. 2d 430 (Ill. 2006).
>
> — micro1 LegalReasonBench, `criterion_8`, rubric at revision `1bfa904c`

My assessment	
Criterion	Defective — professional judgment; arises from the task environment
Task environment	Defective: No affidavit from any of the five physicians is provided in the environment, and the prompt does not explicitly instruct the model to create one. The prompt also says, "If a document is not uploaded, it does not exist for purposes of this analysis."
AI auditors' reasoning	Correct
Sources and run details	Review worksheet, item 19

LegalReasonBench's own grading of two model runs (its judges, not my assessment)	
GPT-6 Luna (xhigh)	GPT-5.6 Terra: not met; Claude Sonnet 5: not met; Gemini 3.8 Flash: not met. Result: not met (0/3)
Claude Opus 5.5 (low)	GPT-5.6 Terra: met; Claude Sonnet 5: met; Gemini 3.8 Flash: met. Result: met (3/3)

My analysis. Same issue as item 14. The criterion rewards a brief for saying an affidavit that does not exist in the environment (and which the model is not instructed to create) shows that DuPage County would be an inconvenient forum. This is one of several rubrics we deemed defective for encouraging models to cite to affidavits that do not exist or have not been settled/signed by the third-party witnesses whose views they purport to represent (14, 15 and 17–20).

20. Plaintiff's Response - Forum Non Conveniens, assignment 2

criterion `criterion_9`

> Quoted from micro1 LegalReasonBench
>
> **Reward criterion, +3 points.** Identifies in Assignment #2 that the affidavit by Maya Linwood indicates that DuPage County would be an inconvenient forum for her to litigate this case as required under Langenhorst v. Norfolk S. Ry. Co. 219 Ill. 2d 430 (Ill. 2006).
>
> — micro1 LegalReasonBench, `criterion_9`, rubric at revision `1bfa904c`

My assessment	
Criterion	Defective — professional judgment; arises from the task environment
Task environment	Defective: No affidavit from any of the five physicians is provided in the environment, and the prompt does not explicitly instruct the model to create one. The prompt also says, "If a document is not uploaded, it does not exist for purposes of this analysis."
AI auditors' reasoning	Correct
Sources and run details	Review worksheet, item 20
LegalReasonBench's own grading of two model runs (its judges, not my assessment)	
GPT-6 Luna (xhigh)	GPT-5.6 Terra: not met; Claude Sonnet 5: not met; Gemini 3.8 Flash: not met. Result: not met (0/3)
Claude Opus 5.5 (low)	GPT-5.6 Terra: met; Claude Sonnet 5: met; Gemini 3.8 Flash: met. Result: met (3/3)

My analysis. Same issue as item 14. The criterion rewards a brief for saying an affidavit that does not exist in the environment (and which the model is not instructed to create) shows that DuPage County would be an inconvenient forum. This is one of several rubrics we deemed defective for encouraging models to cite to affidavits that do not exist or have not been settled/signed by the third-party witnesses whose views they purport to represent (14, 15 and 17–20).

21. OTB Gang VICAR Trial Jury Instructions, assignment 1: Appeal brief re: justification instruction

criterion `criterion_21`

> Quoted from micro1 LegalReasonBench
>
> **Reward criterion, +15 points.** States that Patton's commission of conspiracy to commit a forcible felony precludes a justification defense.
>
> — micro1 LegalReasonBench, `criterion_21`, rubric at revision `1bfa904c`

My assessment	
Criterion	Defective — unambiguous objective error; does not arise from the task environment
Task environment	Correct
AI auditors' reasoning	Correct
Sources and run details	Review worksheet, item 21
LegalReasonBench's own grading of two model runs (its judges, not my assessment)	
GPT-6 Luna (xhigh)	GPT-5.6 Terra: met; Claude Sonnet 5: met; Gemini 3.8 Flash: met. Result: met (3/3)
Claude Opus 5.5 (low)	GPT-5.6 Terra: met; Claude Sonnet 5: met; Gemini 3.8 Flash: met. Result: met (3/3)

My analysis. The rubric rewards models for a legal error. The case involves federal charges against a gang member who shot at a rival gang member after following him from a mall. The defendant pled guilty to state charges of conspiracy to commit a forcible felony in connection with the incident. The rubric wants the prosecution's brief to argue that the commission of conspiracy to commit a forcible felony precludes the justification (self-defense) defense, under Iowa Code § 704.6.

But that statute only applies when the defendant commits a different forcible felony than the one

he is alleging is justified. The paradigmatic case would be a robber who waves a hammer at a store clerk to take the cash in the register, intending only to frighten the clerk, and who cannot claim self-defense if the clerk responds by shooting at him (robbery is a forcible felony under the supplied Iowa Code § 702.11(1)). Iowa courts apply the bar in that setting. *See State v. Roby*, No. 22-1017, slip op. at 8 (Iowa Ct. App. Sept. 27, 2023) (defendant who brought a gun to an apartment and shot an occupant who drew his own weapon: "A justification defense was unavailable to Roby because he was participating in the forcible felony of robbery. See Iowa Code § 704.6(1).").

Here, the defendant is arguing that the shooting itself was an act of self-defense; there is no contention that he was committing a different forcible felony prior to the shooting that would negate his ability to claim self-defense for the shooting itself. (Although we did not find an Iowa case expressly holding that the forcible felony must be independent of the act claimed to be justified, judges in at least one other state with a similar statute have expressly held this. *See Martinez v. State*, 981 So. 2d 449 (Fla. 2008) (holding that for the forcible-felony bar to apply, "there must be an independent forcible felony other than the one which the defendant claims he or she committed in self-defense"). Obviously, the law could not be to the contrary because, if it were, the exception would swallow the rule; self-defense would never be available, because absent the defense, the use of force would almost always constitute a forcible felony.)

This environment is based on a real case, and in the real case, neither the Eighth Circuit nor the government's brief opposing certiorari relied on the argument (that the rubric requires) that the conspiracy to commit a forcible felony precludes the justification defense. Instead, the government argued that the defendant as a felon in possession had a duty to retreat safely and could have done so instead of shooting as he did. The evidence indicates this was a scenario where two rival gangs were actively seeking opportunities to shoot members of the other, not that an innocent person was attacked and then defended themselves.

22. OTB Gang VICAR Trial Jury Instructions, assignment 1: Appeal brief re: justification instruction

criterion `criterion_23`

> Quoted from micro1 LegalReasonBench
>
> **Penalty criterion, −5 points.** Mentions that Patton pled guilty in state court to intimidation with a dangerous weapon.
>
> — micro1 LegalReasonBench, `criterion_23`, rubric at revision `1bfa904c`

My assessment	
Criterion	Defective — professional judgment; does not arise from the task environment
Task environment	Correct
AI auditors' reasoning	Correct
Sources and run details	Review worksheet, item 22

LegalReasonBench's own grading of two model runs (its judges, not my assessment)	
GPT-6 Luna (xhigh)	GPT-5.6 Terra: clear; Claude Sonnet 5: clear; Gemini 3.8 Flash: clear. Result: penalty not applied (0/3)
Claude Opus 5.5 (low)	GPT-5.6 Terra: fires; Claude Sonnet 5: fires; Gemini 3.8 Flash: clear. Result: penalty applied (2/3)

My analysis. The rubric penalizes mentioning that Patton pled guilty in state court to intimidation

with a dangerous weapon, because that incident relates to a different event than the one at issue on his appeal. The rubric seems intended to test the model's ability to distinguish the events and understand that the earlier incident is unrelated. However, it is misspecified because it penalizes any mention of the issue. Opus was penalized merely for including a drafting note that flagged for the attorney that it had decided *not* to rely on the other incident because it was unrelated. A brief or drafting note that mentions the April 13 plea only to set it aside is correct work, so I do not think penalizing a model for merely mentioning it is correct. (The Count XX plea petition is dated November 18, 2020, after the May 10, 2020 shooting, so it is not a prior conviction.)

23. OTB Gang VICAR Trial Jury Instructions, assignment 2: Supplementing brief with new case

criterion `criterion_4`

> Quoted from micro1 LegalReasonBench
>
> **Reward criterion, +25 points.** Mentions that there was a lack of evidence proving who fired first on May 10, 2020.
>
> — micro1 LegalReasonBench, `criterion_4`, rubric at revision `1bfa904c`

My assessment	
Criterion	Defective — unambiguous objective error; does not arise from the task environment
Task environment	Correct
AI auditors' reasoning	Correct
Sources and run details	Review worksheet, item 23

LegalReasonBench's own grading of two model runs (its judges, not my assessment)	
GPT-6 Luna (xhigh)	GPT-5.6 Terra: not met; Claude Sonnet 5: not met; Gemini 3.8 Flash: not met. Result: not met (0/3)
Claude Opus 5.5 (low)	GPT-5.6 Terra: not met; Claude Sonnet 5: not met; Gemini 3.8 Flash: not met. Result: not met (0/3)

My analysis. This is another instance where the task environment differs from the real-world case on which it is based in a way that is material to this specific rubric—and a rubric that would be correct for the real-world case is incorrectly applied to this task environment. In the real case, *United States v. Mallory*, 104 F.4th 15 (8th Cir. 2024), there was a dispute concerning who fired first. This task environment was "closed book," however, and the model was given a statement of facts that says that Raysean Nelson "opened fire as the Trailblazer approached" and that "A rolling gun battle ensued." So there is no basis in the supplied environment for the model to assert that there was a lack of evidence concerning who fired first; the supplied documents state that Nelson did so. The supplied facts are internally consistent; the error is the rubric's failure to follow the task's own changes to the real case.

24. OTB Gang VICAR Trial Jury Instructions, assignment 2: Supplementing brief with new case

criterion `criterion_7`

> Quoted from micro1 LegalReasonBench
>
> **Reward criterion, +10 points.** Mentions that Nelson's car was already stopped

when Patton fired his gun.

— micro1 LegalReasonBench, `criterion_7`, rubric at revision `1bfa904c`

My assessment	
Criterion	Defective — professional judgment; does not arise from the task environment
Task environment	Correct
AI auditors' reasoning	Correct
Sources and run details	Review worksheet, item 24
LegalReasonBench's own grading of two model runs (its judges, not my assessment)	
GPT-6 Luna (xhigh)	GPT-5.6 Terra: not met; Claude Sonnet 5: not met; Gemini 3.8 Flash: not met. Result: not met (0/3)
Claude Opus 5.5 (low)	GPT-5.6 Terra: not met; Claude Sonnet 5: not met; Gemini 3.8 Flash: not met. Result: not met (0/3)

My analysis. This benchmark does two assignments, sequentially, in separate model sessions that are in the same sandbox. In this task, assignment 2 was to build on the assignment 1 output by adding discussion of an additional case. The intent is for models to output response1.md in response to assignment 1, and to output response2.md in the same sandbox for assignment 2.

The model is told, "Build on [the assignment 1] analysis as the prompt directs," but not clearly told that it is expected to output a full revised version of the brief (as opposed to supplemental or revised sections that can be inserted into a revised brief). Since assignment 2 is framed as a mere supplementation task, the model might expect that it should write only the new material.

However, five of the assignment 1 rubrics are repeated on the assignment 2 output—so a model is penalized heavily if it interprets the instructions as requesting simply an update to the specific section to which the new authority is relevant. In effect, the rubric is testing for one particular response to somewhat ambiguous instructions. This rewards work beyond the scope the prompt states, and a complete revised brief is not what the prompt clearly requests.

25. OTB Gang VICAR Trial Jury Instructions, assignment 2: Supplementing brief with new case

criterion `criterion_8`

Quoted from micro1 LegalReasonBench

Reward criterion, +15 points. States that the OTB group could have driven away.

— micro1 LegalReasonBench, `criterion_8`, rubric at revision `1bfa904c`

My assessment	
Criterion	Defective — professional judgment; does not arise from the task environment
Task environment	Correct
AI auditors' reasoning	Correct
Sources and run details	Review worksheet, item 25
LegalReasonBench's own grading of two model runs (its judges, not my assessment)	
GPT-6 Luna (xhigh)	GPT-5.6 Terra: not met; Claude Sonnet 5: not met; Gemini 3.8 Flash: not met. Result: not met (0/3)
Claude Opus 5.5 (low)	GPT-5.6 Terra: met; Claude Sonnet 5: met; Gemini 3.8 Flash: not met. Result: met (2/3)

My analysis. This benchmark does two assignments, sequentially, in separate model sessions that are in the same sandbox. In this task, assignment 2 was to build on the assignment 1 output by adding discussion of an additional case. The intent is for models to output response1.md in response to assignment 1, and to output response2.md in the same sandbox for assignment 2.

The model is told, "Build on [the assignment 1] analysis as the prompt directs," but not clearly told that it is expected to output a full revised version of the brief (as opposed to supplemental or revised sections that can be inserted into a revised brief). Since assignment 2 is framed as a mere supplementation task, the model might expect that it should write only the new material.

However, five of the assignment 1 rubrics are repeated on the assignment 2 output—so a model is penalized heavily if it interprets the instructions as requesting simply an update to the specific section to which the new authority is relevant. In effect, the rubric is testing for one particular response to somewhat ambiguous instructions. This rewards work beyond the scope the prompt states, and a complete revised brief is not what the prompt clearly requests.